

The Penal Law
Promulgated by
Royal Decree 7/2018

Translated by
Ministry of Legal Affairs

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Royal Decree 7/2018
Promulgating the Penal Law

We, Qaboos bin Said, the Sultan of Oman

After perusal of the Basic Statute of the State promulgated by Royal Decree 101/96,
and the Omani Penal Law promulgated by Royal Decree 7/74,
and after presentation to Majlis Oman,
and in pursuance of public interest.

Have decreed as follows

Article I

The provisions of the attached Penal Law shall apply.

Article II

The Omani Penal Law promulgated by Royal Decree 7/74 is hereby repealed, as well as every provision contrary with this Law or in conflict with its provisions.

Article III

This Decree shall be published in the Official Gazette and shall come into force on the day following the date of its publication.

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Corresponding to: 11 January 2018 AD

Qaboos bin Said
Sultan of Oman

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The Penal Law

Book One
General Provisions

Part One
Preliminary Provisions

Article 1

The punishments provided for in this Law shall be deemed *Taziriya* except where a *Hadd* or *Qisas* punishment is provided.

Article 2

The provisions of Book One of this Law shall apply to the crimes stipulated in it, and in any other law unless a special provision relating to them is stipulated therein.

Article 3

There shall be neither crime nor punishment except by virtue of a law.

Article 4

The accused is innocent until proven guilty in a legal trial in which the essential guarantees to exercise his right of defence in accordance with the law are guaranteed. No person shall be held responsible for a crime of another person.

Article 5

Ignorance of the law is not an excuse.

Article 6

The adjudication of the punishments stipulated in this Law shall not bar the adjudication of restitution, compensation, expenses and any other entitlements for the litigants.

Article 7

The terms and dates stipulated in this Law shall be calculated according to the Gregorian calendar.

Article 8

In the application of the provisions of this Law, the word 'night' or the expression 'at night' shall be deemed the period between sunset and sunrise.

Article 9

In the application of the provisions of this Law, the following shall be deemed acts of publicity:

(a) speaking or shouting if made aloud or communicated by any means amid a gathering, in a public place, or in a venue available to the public.
(b) acts, gestures, or movements, if committed in any of the places stipulated in Paragraph (a) of this Article, if communicated to it by any means of communication, or if witnessed by an uninvolved person.
(c) writings, drawings, pictures, symbols, audio, visual or readable media, or other means of expression, if displayed or may be seen, heard, or read by any person in any of the places stipulated in Paragraph (a) of this Article, or if distributed indiscriminately, sold, or displayed for sale.

Article 10

In the application of the provisions of this Law, the following is deemed a public official:

(a) every person holding a government position.
(b) members of Majlis Oman and members of municipal councils.
(c) every person assigned a specific task by a competent public authority within the limits of his assignment.
(d) representatives of the Government in companies, and employees of companies wholly owned by the Government or those to which the Government contributes more than (40%) forty per cent of its capital.
(e) members of the boards of directors of Omani civil associations of public benefit.

Termination of the service or loss of capacity shall not bar the application of the provisions of this Law if the crime is committed during the service or the existence of the capacity.

Article 11

In the application of the provisions of this Law, it shall be deemed public property that which is wholly or partly owned by any of the following bodies or subject to its supervision or administration:

(a) the State or units of the administrative apparatus.
(b) companies wholly owned by the Government or those to which the Government contributes more than (40%) forty per cent of their capital.
(c) any other body whose property is deemed public property by law.

Part Two
Temporal and Geographical Application

Chapter One
Temporal Application of the Law

Article 12

A crime shall be punished in accordance with the law in force at the time it was committed, such time shall be determined as the time at which one of the acts constituting the crime is committed, regardless of the time at which its results are realised.

Article 13

The most favourable law for the accused shall be applied if issued after the crime is committed and before the sentence issued in respect of it becomes conclusive.

If a law is issued – after the sentence becomes conclusive – making the act which the accused is convicted for non-punishable, the execution of the sentence shall stay and its penal consequences shall cease.

Article 14

In exception to Article 13 of this Law, if a law is issued criminalising an act or increasing the punishment prescribed for that act, for a specified temporary term, then the expiry of such term shall not bar the commencement of prosecution nor proceeding with it in respect of the crimes committed during that period, or the execution of the adjudicated punishments.

Chapter Two
Geographical Application of the Law

Article 15

The provisions of this Law shall apply to every crime committed within the territory of the State including the lands under its sovereignty, its territorial waters, and the airspace above them, including crimes committed aboard vessels and aircrafts owned by the State, flying its flag, or managed by it for any purpose, wherever they are.

A crime is deemed committed in the State if one of the acts that constitute the crime is committed within the State, or if the results of that act are realised or intended to be realised within it.

Article 16

Without prejudice to the agreements and conventions to which the State is a party, the provisions of this Law shall not apply to:

(a) crimes committed aboard foreign vessels and aircrafts in or passing through the territory of the State, unless such crimes affect the security of the State, or the offender or the victim is an Omani national, or the captain of a vessel or the pilot of an aircraft requests assistance from the Omani authorities, or the act exceeds the boundaries of the vessel or aircraft.
(b) crimes committed by diplomatic officials and foreign consuls while enjoying immunity granted to them by public international law.

Article 17

The provisions of this Law shall apply to whoever commits outside the State any of the following crimes:

(a) a crime affecting the security of the State, its legally issued financial bonds, or its stamps, or a crime of replicating or forging its official instruments or seals.
(b) a crime of forging, counterfeiting, or replicating Omani currency or coins, promoting them, possessing them with the intention of circulating them, bringing them into the State, or taking them out of it.

Article 18

The provisions of this Law shall apply to every Omani citizen who commits outside the State an act that is considered a felony or misdemeanour in accordance with this Law, if he returns to the State, and the act is punishable in the state in which the crime was committed by imprisonment for a period no less than a year, even if he loses or obtains Omani citizenship after he committed the crime, unless

it is proven that he was tried abroad, and found innocent or guilty, and served the sentence or the sentence was nullified or the proceedings have expired.

If Omani law and the law of the place of the crime differ, such difference shall be observed in favour of the accused.

Article 19

The provisions of this Law apply to:

(a) crimes committed abroad by an Omani official in the course of performing his job or as a result of performing his job.
(b) crimes committed by an Omani official in the diplomatic and consular sector abroad while enjoying diplomatic immunity in accordance with international agreements.

Article 20

The provisions of this Law shall apply to any alien found in the State after committing a crime abroad punishable by a deprivation of liberty sentence for a period no less than a year under the law of the state in which the crime was committed, and whose extradition has not been previously requested, unless it is proven that he was tried abroad, and found innocent or guilty, and served the sentence or the sentence was nullified or the proceedings have lapsed, and if Omani law and the law of the place of the crime differ, such difference shall be observed in favour of the accused.

Article 21

Juristic persons that are subject to the provisions of this Law shall be deemed criminally liable for the crimes committed by their representatives, directors, or agents on its behalf or in its name, but it shall not be permitted to adjudicate other than a fine and other appropriate ancillary punishments prescribed by law.

Part Three
Classification of Crimes and Elements of a Crime

Chapter One
Types of Crimes

Article 22

Crimes shall be classified into three types: felonies, misdemeanours, and infractions. The type of crime shall be specified according to the maximum punishment prescribed for it in the law. If a crime is

punishable by imprisonment as well as a fine, its type shall be determined based on the imprisonment punishment.

Article 23

The type of crime shall not change if the court substitutes the punishment prescribed for it with a less or more severe punishment unless the law stipulates otherwise.

Article 24

Felonies are crimes punishable by the death sentence, life imprisonment, or temporary imprisonment of (3) three to (15) fifteen years.

Article 25

Misdemeanours are crimes punishable by imprisonment for a period no less than (10) ten days and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 26

Infractions are crimes punishable by imprisonment for a period not exceeding (10) ten days, and a fine no less than (10) ten Rial Omani and not exceeding (100) one hundred Rial Omani, or one of those two punishments.

Chapter Two
Material Element

Article 27

The material element of a crime comprises an activity that is criminalised by law through the commission of an act or the omission of an act.

Article 28

A person is not accountable for a crime unless it results from his criminal behaviour. He shall be accountable even if another previous, contemporaneous, or subsequent cause contributes, along with his criminal behaviour, to the occurrence of the offence, if this cause is predictable or probable in the

ordinary course of matters. However, where this cause on its own is sufficient to cause the result of the crime, the perpetrator is not in this case liable except for the act he committed.

Article 29

Attempt is the commencement of the execution of an act with intent to commit a felony or misdemeanour if the effect stops or fails for a reason unconnected to the will of the offender.

Committing an act that is deemed in itself one of the components comprising the material element of the crime, or immediately and directly leads to it, is deemed a commencement of the execution of an act.

It is not deemed an attempt to merely intend to commit it, or undertake preparatory works for it, unless the law otherwise stipulates.

Article 30

An attempt to commit a felony is punishable by the following punishments unless the law stipulates otherwise:

(a) Life imprisonment or imprisonment for a period no less than (7) seven years if the prescribed punishment for the crime is the death sentence.
(b) Imprisonment for a period no less than (3) three years and not exceeding (7) seven years if the prescribed punishment for the crime is life imprisonment.
(c) Imprisonment for a period not exceeding half the minimum limit if the prescribed punishment for the crime is temporary imprisonment.

Article 31

Attempting to commit misdemeanours is not punishable except in cases explicitly stipulated by the law.

Article 32

The provisions governing ancillary and complementary punishments and criminal measures as prescribed for consummated crimes shall apply to attempt.

Chapter Three
Mental Element

Article 33

The mental element of a crime is the intent in deliberate crimes and the mistake in non-deliberate crimes.

Intent is present if the will of the offender is directed towards committing an act or refraining from an act when such act or omission is criminalised by law, with the intention to cause a direct result or any other result criminalised by law and which the offender expects and accepts the risk thereof.

The crime is also intentional if committed against a person other than the intended person.

Mistake is present if the criminal result occurs because of the mistake of the offender or the non-observance of laws or regulations.

Article 34

There shall be no punishment to whoever proceeds with a criminal act by an erroneous material element regarding any of the components constituting the crime.

However, in regard to non-deliberate crimes, it is required that the error must not result from the mistake of the perpetrator.

Article 35

If the offender is ignorant as to the existence of an aggravating circumstance that alters the characterisation of the crime, then he shall not be accountable for it and shall benefit from the legal excuse even if he is ignorant of its existence.

Article 36

The motive for committing a crime is not recognised unless otherwise stipulated by the law.

Part Four
Complicity

Chapter One
Perpetrator and Accomplice

Article 37

The following is deemed the perpetrator of a crime:

(a) whoever commits it on his own, or with others.
(b) whoever participates in committing it, if it comprises a number of acts, and wilfully carries out one of its constituent acts.
(c) whoever uses another, in any manner, to execute the act constituting the crime, if the latter person is not criminally liable for it or has acted in good faith.

Article 38

The following is deemed an accomplice to a crime:

(a) whoever agrees with others to commit it, and it is committed on the basis of this agreement.
(b) whoever gives the perpetrator a weapon, instruments, information, or any other article used in committing the crime, with knowledge thereof, or willingly assists him using any other means in the preparatory, facilitating, or concluding works for its commission.
(c) whoever incites its commission and it is committed on the basis of such incitement.

The liability of the accomplice is established whether his connection with the perpetrator is direct or indirect.

Article 39

Every accomplice present during the commission of the crime or any of the acts constituting the crime is punished by the punishment of the perpetrator. The accomplice is whoever, but for his assistance, the crime would not have been committed.

Other accomplices are punished by life imprisonment if the prescribed punishment is the death sentence. If the prescribed punishment for the act is life imprisonment, the accomplice is punished by imprisonment for no less than (10) ten years and not exceeding (15) fifteen years. In other cases, the punishment shall not exceed half of the maximum limit prescribed for it.

Chapter Two
Consequences of the Circumstances of the Crime on the Participants

Article 40

All participants benefit from extenuating material circumstances even if they are unaware of them. No one is accountable for aggravating material circumstances save for those aware of them.

Article 41

There shall be no effect for personal causes and circumstances, except to those who have them, whether they are exonerating, extenuating, aggravating, or excluding from penal liability.

Article 42

A participant in a crime, whether perpetrator or accomplice, shall be punished by the punishment for the crime that was actually committed, even if different from the one intended to be committed, if the committed crime is a probable result of the participatory acts committed by him.

Article 43

If the characterisation of the crime or punishment changes according to the intent of the perpetrator or his knowledge of its circumstances, the accomplices to the crime shall be punished each according to their intent or knowledge.

Part Five
Exemptions from Penal Liability

Chapter One
Exercise of Right

Article 44

There shall be no crime if the act is committed in good faith in the exercise of a right or in the performance of a duty prescribed by law.

The following is deemed an exercise of a right:

(a) the disciplining by parents, and their equivalents, of minor children within the limits of what is prescribed by Sharia or the law.

(b) practising medical activities if performed in accordance with scientific principles commonly agreed among licensed medical professions, and with the express or implied consent of the patient or his representative, or if the medical intervention is necessary in urgent cases that require such intervention, or the patient is in circumstances that make him unable to express his will and it is impossible to obtain the consent of his representative in a timely manner.
(c) acts of violence committed while practising sporting games within the limits prescribed for such game and with the observance of the rules of care and caution.
(d) acts of violence committed against whoever commits a crime caught red-handed with the intention of arresting him insofar as necessary for this purpose.

Chapter Two
Performance of Duty and Legal Permission

Article 45

There shall be no crime if the act is committed by a public official in any of the following two cases:

(a) if the act is committed in the performance of a duty imposed by law or imposed by a legitimate order issued from competent authorities.
(b) if the act is committed in good faith to enforce a law.

Chapter Three
Legitimate Defence

Article 46

There shall be no crime if the act is committed in the exercise of a right to legitimate defence and such right arises if the following conditions are met:

(a) if the defender faces an immediate danger of a crime against himself, his honour, or his property, or against another person, his honour, or his property, or if the defender believes in the occurrence of such danger and his belief is based on reasonable grounds.
(b) it is impossible for the defender to resort to public authorities in a timely manner to ward off such danger.
(c) there is no other mechanism to ward off such danger.
(d) the defence is necessary to ward off the assault and is proportionate to it.
(e) the defence is directed to the source of assault.

Article 47

If the defender exceeds, in good faith, the limits of the right of legitimate defence, or mistakenly thinks that he is in a situation of legitimate defence, he shall be liable for the committed crime.

In this case, the court may adjudicate the punishment for a misdemeanour instead of a punishment for a felony, and adjudicate the punishment for an infraction instead of a punishment for a misdemeanour.

Article 48

The state of legitimate defence arises, even if the person against whom this right is exercised is not criminally liable according to the provisions of the exclusions to liability prescribed by the law.

Chapter Four
Exclusions from Criminal Liability

Article 49

Whoever has not completed nine years of age at the time of the commission of the crime shall not be criminally liable. The estimation of age is not recognised without an official document, and in the absence of such a document, his age shall be estimated by the means of the competent body.

Article 50

Whoever, at the time of the commission of the crime, is in a state of loss of perception or volition due to insanity, mental handicap or coma arising from narcotic or intoxicating drugs or substances of any kind given to him against his will or without his knowledge, or for any other reason science determines that it causes loss of perception or volition, shall not be criminally responsible.

Article 51

With the exception of murder crimes, he shall not be punished who commits a crime compelled by the necessity to protect himself, his property, or his honour, or protect another person, his honour, or his property from a severe and imminent danger, and which occurs beyond his own will. Whoever commits a crime because of physical or moral duress shall also not be punished.

It is required in the preceding two cases for the perpetrator of the crime to be unable to prevent the danger using other means, and for the crime to be insofar as necessary to ward off the danger and to be proportionate to it.

Chapter Five
General Pardon and Special Pardon

Article 52

(a) A general pardon shall be issued by Royal Decree, and the general pardon nullifies the crime and its legal consequences and abolishes all adjudicated principal, ancillary, and complementary punishments and any consequential fees and expenses payable to the General Treasury of the State. The general pardon shall not bar adjudicating for the injured party a compensation that he requests, or the enforcement of the sentence ordering this compensation. The general pardon shall not affect collected fines and costs or confiscated effects. The general pardon shall not include the ban on residence and the expulsion of an alien unless explicitly stipulated by the decree.
(b) The special pardon shall be granted by an order of His Majesty the Sultan, and the special pardon shall nullify the principal punishment, or commute or substitute it with a lesser punishment prescribed by the law. However, sentenced ancillary or complementary punishments are not included in the special pardon except in accordance with an explicit provision in the royal order granting it.

In all cases, the pardon has no effect on any punishment previously executed, and shall not prejudice the rights of litigants and others.

Part Six
Punishments

Chapter One:
Principal Punishments

Article 53

The principal punishments are:

(a) Death sentence.
(b) Imprisonment.
(c) Fine.

Article 54

Imprisonment is the placement of a convict in one of the disciplinary establishments legally designated for this purpose for the period adjudicated if the imprisonment is temporary, or for life if the imprisonment is for life.

Article 55

Fine is the requirement of a convict to pay the General Treasury of the State the adjudicated amount.

Chapter Two
Ancillary and Complementary Punishments

Article 56

A punishment is deemed ancillary if the law orders it as an inevitable effect of the adjudication of the principal punishment. The punishment is deemed complementary if its imposition is contingent on its pronouncement by the judge if the law permits him to impose it.

Article 57

Ancillary or complementary punishments are:

(a) deprivation of some or all rights and privileges stipulated in Article 58 of this Law.
(b) confiscation.
(c) ban of residence in a particular place or frequenting it.
(d) ban from professional practice.
(e) licence revocation.
(f) deportation of aliens.
(g) closure of the venue or establishment.
(h) dissolution of the juristic person.
(i) placing under police surveillance.
(j) publication of the sentence.
(k) assignment to perform a public service.

Article 58

Adjudicating an applicable punishment for a felony entails, by the power of law from the time of its issuance, depriving the convict throughout the period of execution of the punishment, and for a period of a year thereafter, of the following rights and privileges:

(a) assuming public office.
(b) membership of councils, authorities, and public establishments, boards of directors of public joint stock companies, or assuming the position of a manager thereof.
(c) the right to be elected or to vote.
(d) the right to own, publish, and edit newspapers.
(e) assuming custodianship or guardianship of minors and those equivalent.

(f) management of schools and educational institutions, and practising any educational activity therein.
(g) bearing ordinances, medals, and honorary titles.
(h) carrying arms.

Article 59

With the exception of cases in which the law requires adjudicating a confiscation, the court may, upon conviction of a felony or misdemeanour, adjudicate the confiscation of seized effects obtained from the crime, used in its commission, or prepared to be used in it.

If the mentioned effects are those whose manufacture, use, possession, sale, or display for sale is deemed a crime in itself, it shall be adjudicated to be confiscated in all cases even if those effects are not the property of the accused.

Article 60

If an alien is sentenced to a punishment depriving liberty for a felony, the court shall adjudicate his deportation from the country after completing the execution of the punishment.

The court may order to deport him upon sentencing him to punishment for a misdemeanour.

In all cases, deportation shall be permanent or for a period ranging between (3) three years and (15) fifteen years.

Article 61

Except in cases where the law stipulates for ancillary or complementary punishments, the court may, upon conviction of a felony or misdemeanour, adjudicate one or more of the punishments provided in Article 57 of this Law.

Article 62

If the convict violates the sentences and orders issued pursuant to Articles 57 and 58 of this Law, the court may order to imprison him for a period not exceeding one month.

Chapter Three
Execution of Punishments

Article 63

If more than one legal characterisation applies to the incident, and after establishing the characterisations in the sentence, the most severe characterisation shall be adopted and its punishment, and no other, shall be adjudicated.

Provided that, if a particular penal provision is applicable to the act, only the particular provision applies.

Article 64

If multiple crimes are committed for a single purpose, and they are interlinked in an inseparable manner, they must all be deemed a single crime, and the most severe punishment prescribed for any of those crimes must be adjudicated.

Article 65

If multiple felonies or misdemeanours are established, the punishment for each crime shall be adjudicated, then such punishments shall be integrated into each other, and the execution of the most severe punishment, and no other, shall be adjudicated.

These punishments may be aggregated, provided that their total does not exceed twice the punishment prescribed by law for the most severe crime.

Article 66

If the integration or aggregation of punishment has not been adjudicated, the Public Prosecution shall refer the matter to the court that issued the final sentence to settle the integration or aggregation matter.

Article 67

It is not permitted to integrate a punishment with another if the later crime occurs after the issuance of a conclusive sentence for the prior crime.

Article 68

The following punishments are not subject to the integration principle:

(a) punishments adjudicated for infractions.
(b) ancillary and complementary punishments, even if the principal punishments are integrated.
(c) fines adjudicated for crimes committed against public property or public office.

Article 69

If principal punishments are aggregated, their associated punishments shall be aggregated by law.

Article 70

The death punishment overrides all other punishments, except the punishment of confiscation.

Chapter Four
Stay of Execution

Article 71

The court may, when adjudicating a fine or an imprisonment punishment for a period less than (3) three years, order in the sentence a stay of execution, if it sees from the morals of the convict, his history, his age, or the circumstances under which the crime was committed a reason to believe that he will not return to committing a crime, provided he has a known place of residence.

The court may order the stay of execution to be inclusive of the penal effects arising out of the sentence, or any ancillary or complementary punishment except confiscation.

Article 72

The court may order the stay of execution of the sentence to be conditional on restitution or payment of the adjudicated amounts, and that is by a date determined in the sentence.

Article 73

The period of a stay of execution of a punishment lasts for (3) three years, from the day the sentence becomes final, and if the period of this stay lapses without the issuance of an order revoking it, the sentence shall be deemed as non-existent.

Article 74

The revocation of a stay of execution may be adjuged in any one of the following two cases:

(a) if a sentence of imprisonment exceeding (3) three months is issued against the convict, during the period of a stay, for an intentional crime committed prior to the stay order or after it.
(b) if it becomes apparent, during the period of the stay, that a sentence like the preceding Clause was adjudicated against the convict, and the court was unaware of it.

Article 75

The order to revoke a stay of execution shall be issued by the court that issued the sentence, and that is on the basis of a request by the Public Prosecution after instructing the convict to attend.

Part Seven
Circumstances of the Crime

Chapter One
Legal Excuses

Article 76

Excuses either exempt from punishment or extenuate it, and there shall be no excuse except in cases prescribed by law.

Article 77

Exonerating excuses prevent adjudicating any punishment, except confiscation, deportation of an alien, and closure.

Article 78

The following shall be deemed an extenuating excuse:

(a) diminution or weakness of perception or volition of the offender at the time of the commission of the crime.
(b) aggressive provocation, if originated by the victim unjustifiably.

Article 79

A prescribed punishment shall be commuted if an extenuating excuse is present in the following manner:

(a) if the punishment prescribed for the felony is the death sentence, it is commuted to life imprisonment or imprisonment for a period no less than one year.

(b) if the punishment prescribed for the felony is life imprisonment, it is commuted to imprisonment for a period no less than (6) six months.
(c) if the punishment prescribed for the felony is temporary imprisonment, it is commuted to imprisonment for a term no less than (3) three months.
(d) if the punishment is prescribed for a misdemeanour, the court shall not be bound by a minimum limit.

Chapter Two
Causes for Commutation

Article 80

If the court sees that the circumstances of the crime or the convict call for mercy, it may commute the prescribed punishment in the following manner:

(a) if the punishment prescribed for the felony is the death sentence, it is commuted to life imprisonment or imprisonment for a period no less than (5) five years.
(b) if the punishment prescribed for the felony is life imprisonment, it is commuted to imprisonment for a period no less than (3) three years.
(c) if the punishment prescribed for the felony is temporary imprisonment, it is commuted to imprisonment for a period of no less than a year.

Article 81

If the court sees that the circumstances of the crime or the convict of a misdemeanour call for mercy, it may commute the punishment in the manner stipulated in Clause (d) of Article 79 of this Law.

Chapter Three
Causes for Aggravation

Article 82

The punishment shall be aggravated in cases stipulated by the law.

Article 83

Without prejudice to Article 82 of this Law, the following are deemed aggravating circumstances:

(a) committing a crime for abhorrent motives.

(b) if the perpetrator intentionally puts himself under the influence of intoxicating, narcotic, or psychotropic substances in order to commit the crime.
(c) committing the crime by taking advantage of the inability of the victim to resist, and in circumstances that do not allow others to defend him.
(d) using savage methods to commit the crime, or mutilating the victim.
(e) in case of recidivism in accordance with Article 85 of this Law.

Article 84

If an aggravating circumstance is present in the crime, the court may double the fine, and increase the prison punishment to the maximum limit prescribed by law provided it does not exceed half that maximum limit.

Article 85

The following is deemed as a recidivist:

(a) whoever was adjudicated a conclusive sentence for a felony, and his commission of a felony or a misdemeanour has been established, during the period of execution of the punishment, or within the subsequent (5) five years, after its execution or nullification.
(b) whoever was adjudicated a conclusive sentence for a misdemeanour, and his commission of a felony or a misdemeanour, that is similar or dissimilar, has been established, during the period of execution of the punishment, or within the subsequent (2) two years after its execution or nullification.

Theft, fraud, and breach of trust are deemed similar crimes of recidivism, as well as crimes of murder and intentional harm.

Article 86

If aggravating circumstances coincide with extenuating excuses or circumstances in one crime, they shall be applied in the following order:

(a) material aggravating circumstances.
(b) extenuating excuses.
(c) personal aggravating circumstances.
(d) extenuating circumstances.

The court may, if the aggravating circumstances and the excuses have varying effects, adopt the strongest of them.

Book Two
Crimes

Part One
Crimes Against State Security

Chapter One
General Provisions

Article 87

Attempted crimes against State security stipulated in this Part are punished by the punishment prescribed for the crime.

The preparatory acts for such crimes are punished in accordance with the provisions stipulated in this Law for an attempt.

Article 88

Each of the following shall be punished as an accomplice to the crimes stipulated in this Part:

(a) whoever provides to the offender assistance or means of subsistence or dwelling, shelter, or a meeting venue, facilitates to him the search for the object of the crime, conceals, transfers or report on its object, or any other facilities, even if he does not intend to participate in the commission of the crime.
(b) whoever conceals effects used or prepared for use in the commission of the crime or obtained from it, with knowledge thereof.
(c) whoever wilfully destroys, embezzles, conceals, or alters anything that facilitates the detection of the crime and its evidence or the punishment of its perpetrators.

Article 89

The following are deemed defence secrets:

(a) military, political, economic, and industrial information and plans not known except to persons with such capacity, and of which the interest of the nation mandates they remain secret to all others.
(b) correspondences, documents, records, drawings, maps, designs, pictures, and any other effects, of which the interest of the nation mandates they remain secret except to those with a capacity to maintain or use them.
(c) news and information relating to the armed forces and security forces, their locations, formations, movements, equipment, supply, personnel, and any other thing that affects military affairs and plans for war and security, unless written permission from competent authorities is issued to publish or broadcast them.

(d) news and information relating to the measures and procedures undertaken in detecting the crimes stipulated in this Part and arresting offenders, as well as news and information particular to the conduct of the investigation and the trial, if the investigating body or the court bans its broadcast or publication.

Article 90

In the application of the provisions of this Part:

(a) political groups that have not been recognised by the State as a state and which have been treated as combatants shall be deemed as states, as well as armed insurgents.
(b) wartime shall be deemed to include the period in which the threat of war looms.

Article 91

Each of the following shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years:

(a) whoever participates in a criminal agreement with the purpose of committing one of the felonies stipulated in this Part, or uses it as a means to achieve the intended purpose of the criminal agreement.
(b) whoever calls for committing one of the crimes stipulated in this Part, even if his call is not accepted.

Article 92

Whoever has knowledge of the commission of a crime against State security and does not promptly notify public authorities of it shall be punished for a period no less than (6) six months and not exceeding (3) three years.

Article 93

Whoever takes initiative in notifying public authorities prior to the commencement of the execution of the crime is exempt from the punishments prescribed for crimes against the State.

It is permitted to exempt from punishment if the notification occurs after execution of the crime, or during the course of the investigation procedures, if that would contribute to the arrest of the other perpetrators of the crime, or the perpetrators of another similar crime.

Chapter Two
Internal Crimes Against State Security

Article 94

Whoever assaults the life of the Sultan of the country, causes him grievous harm, assaults his safety or freedom, or intentionally endangers his life or freedom shall be punished by the death sentence.

The punishment shall be life imprisonment if the assault does not result in a threat to his life.

Article 95

Whoever assaults, by force, the prerogatives held by the Sultan of the country by depriving him of them in whole or in part, deposing him, or forcing him to abdicate shall be punished by the death sentence or life imprisonment.

Article 96

Whoever resorts to threat, or any other means, to make the Sultan of the country perform a task, or refrain from a task, within his legal competencies, shall be punished by life imprisonment.

Article 97

Whoever commits, publicly or by publication, a challenge to the rights of the Sultan and his prerogatives, or disgraces his person, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

Article 98

Whoever attempts, through illegitimate means, to change the regime of succession to the throne shall be punished by life imprisonment.

Whoever contributes to establishing an armed group, or assumes a leadership role in it of any kind, shall be punished by the death sentence, if the crime is committed by this group.

Whoever joins this group without participating in its establishment shall be punished by imprisonment for a period of no less than (10) ten years.

Article 99

Whoever attempts, by force or violence, to overthrow the current governing regime of the country or change its structure of government, shall be punished by the death sentence or life imprisonment.

Whoever incites, using any means, the overthrow of the current governing regime of the country, shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Article 100

Whoever uses force with the intention to prevent current authorities from performing their functions shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Article 101

Whoever assaults, within the territory of the State, the life of a head of a foreign state, his safety, or his freedom shall be punished by the death sentence or life imprisonment.

The punishment shall be imprisonment for a period no less than (3) three years and not exceeding (15) fifteen years if the assault does not result in a threat to his life.

Article 102

Whoever publicly commits a challenge to the rights of the head of a foreign state during his presence in the territory of the State, or a representative of a foreign state accredited by the State, or disgraces either of their persons shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

Article 103

Whoever commits any of the following acts in the territory of the State shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years:

(a) an act that desecrates the national flag, the flag of a foreign state, or the flag of a regional or international organisation, by either lowering it, destroying it, or by any other act expressing hatred or disdain.
(b) an act that desecrates the national emblem, the emblem of a foreign state, or the emblem of a regional or international organisation, either by destroying it or by any other act expressing hatred or disdain.

Article 104

Whoever hoists the flag of a foreign state or the flag of any other body in the territory of the State in violation of the law shall be punished by imprisonment for a period of no less than (3) three months and not exceeding (3) three years.

Article 105

Offending acts committed, publicly or by publication, against heads of foreign states, their accredited representatives by the State, or their flags, are prosecuted, automatically or on the basis of a complaint, in accordance with the procedure followed in similar cases in the concerned state.

Article 106

Whoever attempts to prompt an armed rebellion against the authorities of the State or participates in a conspiracy or group created for this purpose shall be punished by life imprisonment.

The punishment shall be the death sentence if it leads to an armed conflict with State forces, or results in the death of a human.

In all cases, the mastermind of the rebellion, its instigator, and whoever takes a leadership role in it of any kind shall be punished by the death sentence.

The rebellion is deemed armed even if the weapons prepared for it are placed in a warehouse and ready for use.

Article 107

Whoever aims to prompt civil war by arming citizens, making them take up arms against each other, or encouraging them to kill each other shall be punished by imprisonment for a period of no less than (7) seven years and not exceeding (15) fifteen years.

The punishment shall be the death sentence or life imprisonment if the aim of the offender is realised.

Article 108

Whoever promotes religious and sectarian tensions or commotions, prompts the feeling of hatred, detestation, or division between the population of the State, or incites it, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Whoever holds a meeting, symposium, or conference relating to the objectives stipulated in the preceding Paragraph, or knowingly participates in any of them, shall be punished by the same punishment.

It is deemed an aggravating circumstance if the crime is committed in a place of worship, an official estate, or a public venue or place, or if committed by a public official during, or as a result of, performing his job, or by a person of religious capacity or one assigned to such capacity.

Article 109

Whoever establishes, forms, organises, leads, or manages an armed group for the purpose of attacking residents, preventing or obstructing the execution of laws, forcefully appropriating land, or sabotaging or forcefully looting property or assets shall be punished by imprisonment for a period no less than (10) ten years and not exceeding (15) years.

The punishment shall be the death sentence or life imprisonment if any of the acts mentioned above are realised.

Whoever joins this group without participating in its establishment, or holds a leadership role in it, shall be punished by imprisonment for a period no less than (7) seven years and not exceeding (15) fifteen years.

Article 110

Whoever seizes or attempts to seize, using any means, a part of the camps or buildings designated to a State establishment, or prevents its use for its designated purpose shall be punished by imprisonment for a period no less than (10) years and not exceeding (15) fifteen years.

If the crime is committed by an armed group, the punishment shall be the death sentence or life imprisonment.

In the application of this provision, State establishments mean units of the administrative apparatus of the State, establishments or associations of public benefit, and any other body to which the State, or any of its establishments, contributes to its capital or financial resources in any form.

In all cases, the punishment shall be the death sentence if the crime is committed in states of emergency, in wartime, or by individuals or organisations loyal to an enemy state at war with the country.

Article 111

Whoever wilfully damages immovable or movable property owned by the State or any of its establishments in accordance with the meaning specified in Article 110 of this Law, with intention to prejudice the interests of the country, shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

If the crime is committed by an armed group, the punishment shall be life imprisonment.

In all cases, the punishment shall be the death sentence if the crime is committed in states of emergency, in wartime, or by individuals or organisations loyal to an enemy state at war with the country.

Article 112

Whoever deliberately proceeds – using any means – to obstruct public roads in a manner that leads to the prevention of their passage, or makes their traverse not easy, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

The punishment shall be no less than (7) seven years if the perpetrator deliberately prevents the passage of ambulances, their equivalent, or public security vehicles.

In all cases, the punishment shall be no less than (10) ten years, if the act is accompanied by a threat to use weapons.

Article 113

Whoever proceeds with a terrorist act that spreads fear and horror among people or frightens them using explosives, or poisonous, incendiary, inflammable, or epidemic substances, or other means that create a public hazard shall be punished for a period no less than (7) years and not exceeding (15) fifteen years.

The punishment shall be life imprisonment if the act leads to the sabotage or destruction of buildings or establishments designated as public facilities, the sabotage or destruction of modes of air, land, or water transport or any of their establishments, or the demolition of a building, or a part of it, that is inhabited or designated for residence. The punishment shall be the death sentence if the act results in the death of a person.

Article 114

Each of the following shall be punished by imprisonment for a period no less than (7) seven years and not exceeding (15) fifteen years:

(a) whoever forcefully assumes political or civil authority, or military or security command.
(b) whoever proceeds to form a military or security force, regardless of form or purpose.
(c) whoever proceeds with a hostile act against a foreign state that jeopardises political relations or exposes citizens, employees, or interests of the country to the danger of retaliatory acts.

Article 115

Each of the following shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years:

(a) whoever wilfully incites, broadcasts, or publishes, internally or abroad, false or malicious news, data, or rumours, or broadcasts propaganda, that undermine the stature of the State or weakens the confidence in its financial markets or its economic and financial standing.
(b) whoever possesses, obtains, or transports documents, publications, or recordings containing any of the those stipulated in the preceding Paragraph, if prepared for distribution to, or perusal by, others.
(c) whoever possesses, obtains, or transports any means of printing, recording, or publicity designated – even if temporarily – for printing, recording, or broadcasting any of the foregoing.

The punishment shall be imprisonment for a period no less than (3) three years and not exceeding (10) ten years if the crime is committed during states of emergency, wartime, or disasters.

Article 116

Whoever founds, establishes, organises, manages, or funds an association, party, authority, organisation, centre, or the like, irrespective of name or form, or a branch thereof, intended to oppose the political, economic, social, or security principles of the State or to enable a segment of a society to control another or eliminate it shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Whoever joins any of these associations, parties, authorities, organisations, or a branch thereof, participates in them in any form, promotes them or recommends their joining, even if their headquarter is abroad shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

In an all cases, it shall be adjudicated to dissolve them, close down the venue in which their activities are carried out, and confiscate funds, papers, publications, and other effects used or prepared to be used in the crime.

Article 117

Whoever uses duress or any other means to force a person to join any of the bodies stipulated in Article 116 of this Law or prevents him from dissociating from it shall be imprisoned for a period no less than (10) ten years and not exceeding (15) fifteen years. The punishment shall be the death sentence if the act results in the death of the victim or any other person.

Article 118

Whoever possesses or obtains documents or publications containing recommendations or promotions for anything stipulated in Article 116 of this Law if prepared for distribution or perusal by others, and whoever possess or obtains any means of printing, recording, or publicity, designated – even if temporarily – for printing, recording, or broadcasting announcements or advertisements for any of

the bodies stipulated in Article 116 of this Law intended for one of the purposes mentioned in that Article shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Article 119

Whoever directly – or by proxy – receives or accepts, through any means, funds or benefits from a person or authority, inside the country or abroad, or from a foreign state if done in pursuance of the commission of the crimes stipulated in this Part or with the intention of promoting them shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

In all cases, the confiscation of such funds shall be adjudicated.

Article 120

Whoever asks, for himself or another, accepts, or takes, even if by proxy, from a foreign state or a person working for the benefit of that foreign state, a gift or another benefit or a promise for the like, with the intention of committing an act detrimental to a national interest shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Whoever gives, promises, or propositions any of the foregoing, shall be punished by the same punishment, even if his offer, promise, or proposition is not accepted and even if he is a proxy.

The punishment shall be life imprisonment if the offender is a public official or if the crime is committed in wartime.

In all cases, the confiscation of funds shall be adjudicated.

Article 121

Whoever participates in a crowd in a public place, comprising of (10) ten persons or more, that undermines public security and order, or remains in the crowd after issuance of the order from competent authorities to disperse or leave, shall be punished by imprisonment for a period no less than (3) three months and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

If the crowd uses violence, any person who incites or participates in such violence shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 122

Whoever participates in a crowd and carries a melee weapon or any tools or materials not carried in normal circumstances shall be punished by imprisonment for a period no less than (6) months and not exceeding (2) two years.

If the participant in a crowd carries a firearm or inflammable substances, the punishment shall be imprisonment for a period no less than (2) two years and not exceeding (3) three years.

Article 123

Whoever calls for, or incites, a crowd shall be punished by imprisonment for a period no less than (3) three months and not exceeding (6) six months.

The punishment is doubled for those who lead the movement or incite children under the age of (18) eighteen years.

Article 124

Whoever gathers in a crowd with the purpose to commit a crime, prevent the execution of laws or regulations, influence the work of authorities, or deprive a person of the freedom of work or movement shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Chapter Three
External Crimes Against State Security

Article 125

Whoever wilfully commits an act that affects the independence or unity of the country, or the safety of its lands, shall be punished by the death sentence or life imprisonment.

Article 126

Every Omani who joins, in any form, armed forces, military formations, or paramilitary formations of a state at war with the country, or joins an armed power of an enemy body, or takes up arms against the country shall be punished by the death sentence or life imprisonment.

It is permitted to exempt from the punishment whoever is found in the lands of that state and is forced to commit the act in accordance with its laws.

Article 127

Whoever wilfully engages in, in any manner, or plans for, the gathering of people, funds, supplies, or equipment in the interest of a state at war with the country, or in the interest of an enemy group even if it does not possess combatant status, shall be punished by the death sentence or life imprisonment.

The punishment shall be life imprisonment for each of the following:

(a) whoever interferes for the interest of the enemy in undermining the loyalty of the armed forces or weakening its spirit or resilience.
(b) whoever incites soldiers in wartime to join the service of a foreign state or facilitates it.

Article 128

Whoever facilitates, to the enemy, entry into the country, surrenders to it a part of the lands or ports of the country, establishments or modes of transportation, transports weapons, ammunition, supplies and any other thing prepared or used for defence, or assists the enemy by communicating news to it or acting as its guide shall be punished by the death sentence.

Article 129

Whoever surrenders or discloses in any manner and using any means to another state, foreign body, or anyone working in its interest, a defence secret of the country, manages using any method to obtain such secret with the intention to surrender or disclose it, or facilitates its attainment shall be punished by life imprisonment.

The same punishment also applies to whoever destroys, in the interest of a foreign state, any thing designated as defence secret, or makes it unusable.

The punishment shall be the death sentence if the crime is committed in wartime.

Article 130

Every public official who discloses a defence secret of the country entrusted to him shall be punished by imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years.

The punishment shall be the death sentence or life imprisonment if he discloses the secret in wartime.

Article 131

Each of the following shall be punished for a period no less than a year and not exceeding (3) three years:

(a) whoever obtains by illegitimate means a defence secret of the country without an intention to surrender or disclose it to a foreign country or to anyone working in its interest.

(b) whoever prepares or uses a means of communication with the intention of obtaining a defence secret of the country.

The punishment shall be imprisonment for a period no less than (3) three years and not exceeding (10) ten years if the crime is committed in wartime.

Article 132

Whoever broadcasts using any means a defence secret of the country shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

The punishment shall be imprisonment for a period no less than (5) five years and not exceeding (10) ten years if the crime is committed in wartime.

Article 133

Whoever undertakes for a foreign enemy state, foreign enemy body, or someone working in their interest, or provides intelligence to any of them, to assist in their military operations, to damage the military operations of the country, or to undertake any hostile acts against it shall be punished by the death sentence or life imprisonment.

Article 134

Every Omani or alien who undertakes for, in time of peace, a foreign state, foreign body, or someone working in their interest, or who provides intelligence to any of them, and the subject of the undertaking or intelligence is aimed against the country, shall be punished by imprisonment by a period no less than (10) ten years and not exceeding (15) fifteen years.

The punishment shall be life imprisonment if the crime is committed by a competent public official.

Article 135

Every Omani who undertakes for, or provides intelligence to, a foreign state, foreign body, or someone working in their interest, and the subject of the undertaking or intelligence is not aimed against the country shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

Article 136

Whoever is assigned to negotiate with a foreign state, or a regional or international organisation, country affairs and deliberately conducts such negotiations against the interest of the country shall be punished by imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years.

The punishment shall be life imprisonment if a detriment to the interest of the country is realised.

Article 137

Whoever wilfully fails, in wartime, to perform obligations imposed by a contracting, transport, supply, or general works contract connected to the government for the needs of military forces, the protection of civilians, their supply, or commits fraud in their performance shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

The punishment shall be life imprisonment if the crime is committed with the intention to damage the defence of the country or the operations of military forces.

The punishment includes – as the case may be – subcontractors, agents, brokers, and consultants if the failure to perform the obligation or the fraud in performance is attributed to their actions.

Article 138

The punishment shall be imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (5,000) five thousand Rial Omani, or one of those two punishments, if the failure to perform all or some of the obligations mentioned in Article 137 of this Law is a result of negligence or default.

Article 139

Whoever facilitates the escape of a prisoner of war, a detained enemy subject, or its detained agents, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years. The same punishment shall also apply to whoever provides dwelling, shelter, sustenance, clothing, or other means of assistance or facilitation to an enemy soldier or agent or assists in his escape while being aware of his identity.

Article 140

Whoever engages in commercial activities in wartime with enemy state subjects, agents, or representatives, personally or by proxy, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years, and a fine no less than (2,000) two thousand Rial Omani and not exceeding (5,000) five thousand Rial Omani.

The confiscation of effects subject of the crime shall be adjudicated.

Article 141

Whoever wilfully destroys, conceals, embezzles, leaks, or forges papers or records relating to State security or any other national interest, with knowledge thereof, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

The punishment shall be imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years if the crime is committed by a competent public official.

Article 142

Whoever wilfully damages, destroys, or disables a weapon, ammunition, vessel, aircraft, equipment, establishment, modes of transportation, public utility, or other things prepared or used for the defence of the country shall be punished by imprisonment for a period no less than (7) seven years and not exceeding (15) years.

Whoever wilfully and improperly manufactures or repairs anything provided in the preceding Paragraph, or wilfully commits an act that results in rendering them unfit or harmful shall be punished with the same punishment.

The punishment shall be the death sentence or life imprisonment if the crime is committed in wartime.

Article 143

Whoever causes by mistake the commission of the acts stipulated in Article 142 of this Law shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

The punishment shall be imprisonment for a period no less than (3) three years and not exceeding (10) ten years if the crime is committed in wartime and leads to the disruption of military operations.

Article 144

Each of the following shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years:

(a) whoever flies over the territory of the country using any means without a licence from competent authorities. Penetrating the territory of the State using an unmanned aircraft or any flying object is deemed flying.
(b) whoever photographs, sketches, or maps locations and places contrary to the bans issued by competent authorities.
(c) whoever enters the location of a defence establishment, a camp, a camping or docking site of armed forces, warships, commercial vessels, or military aircrafts or vehicles, an armoury, or venue or factory in which work for the interest of defending the country is undertaken, and its entry is forbidden to those unauthorised.

(d) whoever resides or is present in a location in which residence or presence is prohibited by competent authorities.

The punishment shall be imprisonment for a period no less than (5) five years and not exceeding (15) fifteen years if the crime is committed in wartime.

Article 145

Every Omani who participates in fighting outside the State without legal justification, joins extreme religious or intellectual factions or groups or those classified as terrorist organisations, supports or adopts their ideology or philosophy in any form, provides to them any form of material or moral support, or incites, encourages, or promotes any of the foregoing verbally or in writing, using any means, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (15) fifteen years.

If the perpetrator of any of the acts mentioned in the preceding Paragraph is an officer or personnel of the armed forces, the punishment shall be imprisonment for a period no less than (5) five years.

Part Two
Transnational Organised Crime

Chapter One
Organised Criminal Group

Article 146

In the application of the provisions of this Part, transnational organised crime means crimes of a transnational nature committed by an organised criminal group.

Organised criminal group means every group with an organisational structure formed of at least (3) three persons with the intention of committing a crime or more punishable by law by imprisonment for a period no less than (3) three years, or any of the crimes stipulated in this Part for the purpose of acquiring, directly or indirectly, a material or non-material benefit.

Article 147

The crime is deemed to be of transnational nature in the following cases:

(a) If committed in the territory of the State by an organised criminal group conducting criminal activity in more than one state.
(b) If a component of it, be it an agreement, incitement, assistance, or execution, is committed within the boundaries of the country, and another component is committed outside its boundaries.

(c) If committed in any state and had direct and substantial effects on the territory of the State.

Article 148

Whoever creates an organised criminal group or participates in its creation by agreement, assistance, or incitement with the purpose of committing a transnational organised crime shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Article 149

Whoever participates in criminal activities of an organised criminal group, shall be punished by imprisonment for a period no less than (4) four years and not exceeding (7) seven years, if he becomes aware of the objective of the group and its criminal activity or of its intention to commit a transnational crime.

If a juristic person participates in any of the foregoing activities, it shall be punished by a fine no less than (10,000) ten thousand Rial Omani and not exceeding (50,000) fifty thousand Rial Omani, along with the dissolution of the juristic person.

Article 150

The court may commute the punishment for the offender who provides assistance in the investigation or trial proceedings in regards to any transnational organised crime.

Chapter Two
Proceeds of Organised Crime

Article 151

It shall be adjudicated to confiscate assets, equipment, or any tools used or intended to be used in transnational organised crime, and the proceeds or revenues of such crimes, or benefits obtained from those proceeds.

The Public Prosecution and the court may issue an order to submit banking, financial, or commercial records, and seize them with the purpose of uncovering the revenues and assets obtained from transnational organised crime.

Article 152

Confiscated proceeds and assets shall be transferred to the General Treasury of the State. It is permitted, on the basis of a request by another state – in whose territory a component of the criminal activity of the organised group is committed – to split those proceeds or assets in accordance with an agreement or arrangements undertaken with the requesting state.

Chapter Three
Migrant Smuggling

Article 153

Whoever wilfully smuggles migrants through land, sea, or air, as part of the activity of an organised criminal group, and for the purpose of directly or indirectly acquiring a material or non-material benefit, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (500) five hundred Rial Omani and not exceeding (5,000) five thousand Rial Omani.

Whoever undertakes the any of the following acts with the purpose of facilitating the smuggling of migrants shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (10,000) ten thousand Rial Omani:

(a) preparing a forged travel document or identification.
(b) procuring the acquisition, provision, or possession of such documents.
(c) enabling a person who is not a citizen or permanent resident of Oman to remain, without adhering to the conditions required to remain in it, using illegitimate means.
(d) putting migrants in circumstances that expose them, or likely to expose them, to danger, threatening their lives and safety, or treating them a treatment that is inhumane or degrading.

Part Three
Crimes of General Danger

Chapter One
Arson

Article 154

Whoever sets fires to property owned by another shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

The punishment shall be imprisonment for a period not exceeding (7) seven years if it exposes the lives of people to danger.

Article 155

Whoever wilfully sets fire to any of the following shall be punished by imprisonment for a period no less than (7) seven years and not exceeding (15) fifteen years:

(a) a mine, oil or gas well, or anything associated with their production, refining, or transportation.
(b) a warehouse for fuel or any other inflammable materials.
(c) a factory or warehouse for explosives, firecrackers, weapons, ammunition, or anything used in military missions.
(d) a power or water plant.
(e) a building by a State establishment in accordance with the meaning stipulated in Article 110 of this Law.
(f) a mode of public land, sea, or air transportation.

Article 156

The punishment shall be the death sentence or life imprisonment if the fire stipulated in Articles 154 and 155 of this Law results in the death of a person.

Article 157

Whoever wilfully sets fire to property owned by him with the intention to gain an illegitimate benefit, or if that causes detriment to others, shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 158

Whoever causes by mistake setting fire to property owned by others shall be punished by imprisonment for a period no less than a month and not exceeding (3) three months, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

If the value of the burnt effects does not exceed (100) one hundred Rial Omani, and there is no danger to persons or damage to other effects, the offender shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a month, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 159

Whoever removes a firefighting device, relocates it, or renders it unfit for use shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a month, and a fine no less than (100) one hundred Rial Omani and not exceeding (200) two hundred Rial Omani, or one of those two punishments.

Whoever is responsible by law or regulations for acquiring a firefighting device and neglects to install it appropriately, or does not keep it in continuous working condition, shall be punished by the same punishment.

Chapter Two
Piracy and Assault of Public Transportation Modes and Public Utilities

Article 160

Whoever attacks a mode of public transportation using any means shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

The punishment shall be imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years if the act is committed with the intention of seizing the mode of public transportation or all or some of the goods it carries, harming or detaining one or more persons aboard it, or diverting its route.

The punishment shall be life imprisonment if the act is committed by a person aboard that mode of transportation, or if the act leads to its sabotage.

If the offender returns the mode of transportation immediately after its seizure, and his act does not cause damage to it or to the goods it carries or harm to persons aboard it, the court may adjudicate imprisonment for a period no less than (3) three years and not exceeding (5) five years.

Article 161

Each of the following shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years:

(a) wilfully exposes to danger – using any means – the safety of any mode of public transportation.
(b) engages in an act of violence against a person aboard a mode of transportation, if that exposes it to danger.
(c) provides information with the knowledge of it being false, and which threatens the safe navigation of a mode of transportation.

Article 162

Each of the following shall be punished by life imprisonment:

(a) whoever proceeds to plant, using any means, a bomb or any dangerous substance aboard a mode of transportation in a manner that leads to its destruction or harming it, its passengers, or its cargo.
(b) whoever destroys a sea, air, or land navigation facility or causes grievous harm to it.

Article 163

Whoever wilfully – without a legitimate right and while carrying a weapon – commits any of the following acts shall be punished by imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years:

(a) violence against persons in an airport, port, or public transportation station if it causes a severe injury.
(b) severe destruction of the facilities of airports, ports, or modes of transportation in them, or the obstruction of their operations.

Article 164

In all cases stipulated in the preceding Articles of this Chapter, the punishment shall be the death sentence or life imprisonment if the act leads to the death of a person.

Article 165

Whoever causes, by his mistake, an accident to a mode of public transportation that disrupts its operation, or exposes persons to danger, shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 166

Whoever wilfully causes a break, damage, or the like, to machines, pipelines, or devices of the water, electricity, oil, or gas utilities, or other public utilities, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

In the case of a mistake, the punishment shall be imprisonment for a period no less than (10) ten days and not exceeding a month, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 167

Whoever wilfully exposes the lives of people, or their safety, to danger by putting substances, germs, or other things that cause severe damage to public health in a well, water tank, water connecting pipelines, falaj, or the like, shall be punished by imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years.

The punishment shall be the death sentence or life imprisonment if the act leads to the death of a person.

Article 168

Whoever threatens to commit any of the crimes stipulated in this Chapter with the objective of forcing a person to commit, or refrain from committing, an act if that threat exposes the safe navigation of public modes of transportation to danger shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Part Four
Crimes Undermining Public Confidence

Chapter One
Forgery and Replication of Seals, Marks, Stamps, and Cards

Article 169

Whoever replicates or forges, whether personally or through another, a seal or mark of the State, a seal or signature of His Majesty the Sultan, a seal or mark of a foreign state, a seal or mark of one of the units of the administrative apparatus of the State, a seal or signature of one of its officials, or a government hallmark on gold, silver, and other precious metals, shall be punished by imprisonment for a period no less than (5) five years and not exceeding (15) fifteen years.

Whoever knowingly manufactures or obtains forgery or replication equipment, possesses replicate or forged seals or marks, or brings them into the country, shall be punished by the same punishment.

Whoever knowingly uses, without having the right to, those seals or marks, genuine or forged, shall be punished by the same punishment.

Article 170

The punishment shall be imprisonment for a period no less than (3) three years and not exceeding (15) fifteen years if the subject of the crime of Article 169 of this Law is a seal, card, or mark of any

of the banks, establishments, companies, associations, or organisations in which the government contributes, or a seal, or mark of public interest associations, establishments, or authorities.

Article 171

Whoever replicates a seal or registered mark of a private company, establishment, or any entity whatsoever shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (5,000) five thousand Rial Omani, or one of those two punishments.

Whoever knowingly uses, without having the right to, those seals or marks whether genuine or forged shall be punished by the same punishment.

Article 172

Whoever manufactures, possesses, or displays for sale publications, specimens, or cards resembling in their appearance financial stamps, postal or communication marks and stamps of the State or of a member state of the Universal Postal Union, or sealed correspondences with the intention of knowingly using them in an illegitimate manner shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (5,000) five thousand Rial Omani.

International reply coupons are deemed as stamps and marks.

Article 173

Whoever knowingly forges, falsifies, or promotes official sheets of stamps irrespective of their kind shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Article 174

Whoever replicates or forges metal plates or other marks issued in pursuance of laws, regulations, and instructions particular to transportation or traffic shall be punished by imprison for a period no less than a month and not exceeding (2) two years, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Whoever knowingly uses, without having the right to, those seals or marks whether genuine or forged shall be punished by the same punishment.

Chapter Two
Counterfeit of Currency and Financial Bonds

Article 175

Whoever knowingly replicates, counterfeits, or forges using any means a currency note or coin legally in circulation in the State or any other state, forges national public bonds, or promotes any of them, shall be punished by imprisonment for a period no less than (5) five years and not exceeding (15) fifteen years.

If that leads to the decline of the value of the national currency or bonds or the undermining of securities in domestic or foreign markets, the punishment shall be imprisonment for a period no less than (10) ten years.

Article 176

Whoever replicates or counterfeits using any means a commemorative national currency, the issuance of which is authorised by law, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

In all cases, confiscation shall be adjudicated.

Article 177

Whoever accepts in good faith any of the currency or bonds previously mentioned in Articles 175 and 176 of this Law, whether replicate, counterfeit, or forged, and subsequently knowingly deals in them, shall be punished by imprisonment no less than a month and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

Article 178

Whoever manufactures, with the intention of sale or distribution, coins or notes resembling the currency in circulation in the State or licensed securities, if that is intended to mislead the public, shall be punished by imprisonment for a period no less than (3) three months and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Whoever sells, distributes, promotes, or possesses, for cultural, scientific, industrial, or commercial purposes, with the intention of selling or distributing, coins or notes resembling the currency in circulation in the State or licensed securities, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not

exceeding (300) three hundred Rial Omani, or one of those two punishments, if the resemblance misleads the public.

Article 179

Whoever manufactures, acquires, possesses, or gives materials, tools, or instruments designated for manufacturing, counterfeiting, or altering money or bonds shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

The confiscation of such materials, tools, or instruments shall be adjudicated.

Article 180

Every offender who takes initiative to notify competent authorities prior to the use of the replicate, forged, or counterfeit currency or bond, and prior to the detection of the crime, shall be exempt from the punishments stipulated in this Chapter.

If the notification occurs after the detection of the crime, it is permitted for the court to exempt him from punishment if the notification leads to the arrest of any of the offenders, or the detection of another crime stipulated in this Chapter.

Chapter Three
Forgery of Documents

Article 181

Every competent public official who alters – with the intention of forging – the subject matter of documents by altering a declaration of a person concerned, and does so by knowingly making an untrue incident appear as true, or by making an unrecognised incident appear as recognised, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Article 182

Every public official who forges, in the course of performing his job, or as a result of it, issued adjudications, reports, minutes, records, registers, books, or other official instruments by forging signatures or seals, or changing the instruments, seals, or signatures by deletion, addition, or modification, through the insertion of names of other persons, or in any other form shall be punished by imprisonment for a period no less (3) three years and not exceeding (7) seven years.

The punishment shall be imprisonment for a period no less than (3) three years and not exceeding (5) five years if the forgery is committed by a person who is not a public official.

Article 183

Whoever uses a forged official instrument, with knowledge of its forgery, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

Article 184

Whoever forges or uses customary instruments, with knowledge of its forgery, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years.

Article 185

Each of the following shall be punished by imprisonment for a period no less than a month and not exceeding (2) two years, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments:

(a) whoever obtains, by assuming a false name or capacity, any official document carried by individuals such as a passport, identification card, residency card, driving licence, work, permit, official licence, or official permit.
(b) whoever provides competent authorities with untrue statements, or submits forged documents, that lead to obtaining an official instrument.
(c) whoever wilfully provides a competent authority with untrue statements about his nationality, name, or place of residence during an investigation.

Whoever withdraws before competent authorities the statements or documents he submitted prior to their use shall be exempt from punishment.

Article 186

Whoever knowingly issues a forged certificate or statement concerning pregnancy, birth, sickness, disability, death, or any other matter connected to his profession shall be punished by imprisonment for a period no less than a month and not exceeding (3) three years.

Article 187

Every public official who issues any of the instruments mentioned in Article 186 of this Law with knowledge that the person to whom the instrument is issued assumed a false name or capacity, or with the knowledge of the untruthfulness of the statements and papers on the basis of which it was issued, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (2) two years.

Article 188

Whoever fabricates or replicates an instrument that resembles an official instrument, with the intention of using it as a genuine instrument, shall be punished by imprisonment for a period no less than a month and not exceeding (3) three years.

Part Five
Crimes Relating to Public Office

Chapter One
Impersonation of Office and Capacity

Article 189

Whoever impersonates the capacity of a public official shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

The impersonator shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, if he exercises, without having the right to, the functions of a public office.

Article 190

Each of the following shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani:

(a) whoever wears, in public and without having the right to, an official uniform particular to a public official, or carries honorary ordinances or insignia of the State or of another state.
(b) whoever unduly assumes a scientific or academic title officially recognised, a military rank, or a public representation capacity.

The impersonator shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, if he actually exercises the office or job he is impersonating.

Chapter Two
Assault of Public Officials

Article 191

Whoever offends or threatens a public official in the course of performing his job, by reason of it, or because of his affiliation to it shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

If the insult or the threat is committed against a member of the judiciary or of the security or military authorities, the punishment shall be imprisonment for a period no less than (3) three months and not exceeding (2) two years, and a fine no less than (300) three hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 192

Whoever assaults a public official, or resists him with violence or force, in the course of performing his job, because of it, or by reason of affiliation to it, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1000) one thousand Rial Omani, or one of those two punishments.

If the assault is committed against a member of the judiciary or of the security and military authorities, the punishment shall be imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Article 193

Whoever uses force, violence, or threat against a public official to make him, without having the right to, perform a function of his office or to refrain from it, regardless of whether the objective of the offender is realised, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Chapter Three
Public Officials Exceeding the Limit of Their Office and Defaulting in the Performance of Their Duties

Article 194

Every public official who uses his job, or violates its duties, to harm an individual or to attain a benefit to himself or another, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (200) two hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

Article 195

Every public official who wilfully refrains from undertaking a duty of his job to pursue a crime of which its detection, investigation, or arrest of its perpetrator falls within the scope of his competencies shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (200) two hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Article 196

Every public official, assigned to search for or detect crimes, who neglects or delays reporting a crime connected to his knowledge, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

Every public official, not assigned to search for or detect crimes, who neglects or delays reporting to competent authorities a crime he is aware of as a result of his office, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani.

There shall be no crime if the commencement of prosecution in the cases stipulated in the preceding Paragraphs is conditional on a complaint or a request.

Article 197

If at least (3) three public officials, in agreement with each other or with the desire to achieve an illegitimate objective, leave their work in a manner that harms the interest of work or wilfully refrain from performing a duty of their office, each shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months.

The punishment shall be imprisonment for a period no less than (6) six months and not exceeding a year if the departure or refraining puts the lives, health or safety of people in danger, disrupts another public interest, or causes disturbance or commotion among people, or the offender is an instigator.

Article 198

Whoever stops the work of those responsible for, or those undertaking, the management of a public utility, and that leads to the disruption of the performance or continuity of a public service, shall be punished by imprisonment for a period no less than (6) six months and not exceeding a year, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Article 199

Every public official who deliberately fails to undertake his office duties, and that causes harm to State interests, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 200

Every public official who abuses the authority of his office to stop the execution of laws, royal decrees, royal orders, or a sentence or order issued by an authority of judicial capacity shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Article 201

Every public official who discloses a secret he knows as a result of his office shall be punished by imprisonment for a period no less than a month and not exceeding (3) three years, and a fine no less than (200) two hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

The termination of service or loss of capacity shall not bar the application of this Article.

Article 202

Every public official who enters – by virtue of his office – a house of a person or one of its annexes without the consent of the person concerned, or makes another enter, outside the cases stipulated in the law, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Every public official who – in violation of the law – inspects a person, house, or establishment without the consent of the person concerned, or makes another inspect, shall be punished by the same punishment.

Article 203

Every public official who uses cruelty – by virtue of his office – with any person shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments, if that leads to his harm or the violation of his honour or dignity.

Article 204

Every public official who tortures an accused person, or orders his torture, to make him admit to a crime, or to provide information about it, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Article 205

Every public official who arrests, detains, or incarcerates a person, outside the cases stipulated in the law, orders a punishment contrary to the one adjudicated for him, or orders a punishment not adjudicated for him, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

Article 206

Every official or employee of the postal service who conceals or opens a letter or parcel handed over to the post, or facilitates that to another, outside the cases authorised by law, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

Every official or employee of the telegraph service who conceals a telegram, discloses it, or facilitates that to another, outside the cases authorised by law, shall be punished by the same punishment.

Article 207

Every public official who asks or accepts, for himself or another, any reward or promise for reward in order to perform a task or duty of his office, or to refrain from performing a task that he is obliged to refrain from, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years, a fine equivalent at least to what he was given or promised, removal from office, and permanent prohibition from assuming public office.

The provision of this Article shall apply even if the task stipulated in the preceding Paragraph does not fall within the tasks of the office of the offender.

Article 208

Every public official who asks or accepts, for himself or another, any reward or promise for reward in order to perform a task contrary to the duties of his office, or to refrain from performing a task that he is obliged to perform by virtue of his office, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years, a fine equivalent at least to what he was given or promised, removal from office, and permanent prohibition from assuming public office.

Article 209

Every public official who accepts money or benefit from a person as reward, without prior agreement, after performing a task of his office for that person, refraining from performing one of its tasks, or failing one of its duties, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years and a fine equivalent at least to what he was given.

Article 210

Every public official who fails his office duties as a result of a plea, a recommendation, or favouritism shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Article 211

Whoever offers a bribe to a public official, and the bribe is not accepted, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Article 212

The bribor and the proxy shall be punished by the same punishment prescribed for the bribee. Nevertheless, the bribor or the proxy shall be exempt from punishment if they take initiative to report the crime to competent authorities, or admit to it prior to its detection, even if it occurs after its conclusion. If the admission takes place after detecting the crime, it is permitted to deem the admission an extenuating excuse.

Chapter Four:
Embezzlement and Damage to Public Property

Article 213

Every public official who embezzles public or private property, or its equivalent, in his possession or under his management, by virtue of his office or as a result of it, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years, and a fine equivalent to the value of the property subject of the crime. If the embezzlement is committed through forgery or by using a forged instrument, the punishment shall be for a period no less than (5) five years and not exceeding (10) ten years.

In all cases, the offender shall be sentenced to restitution, removal from office, and permanent prohibition from assuming public office.

Article 214

Every public official who misappropriates public property, or facilitates that to another, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years, and a fine equivalent to the misappropriated property.

In all cases, the offender shall be sentenced to restitution, removal from office, and permanent prohibition from assuming public office.

Article 215

Every public official responsible for the collection of taxes, fees, fines, or the like, who knowingly requests or takes what is not due or in excess of that which is due, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

If he misappropriates it for himself or another, the punishment shall be imprisonment for a period no less than (5) five years and not exceeding (10) ten years, and a fine equivalent to the misappropriated money.

In all cases, the offender shall be sentenced to restitution, removal from office, and permanent prohibition from assuming public office.

Article 216

Every public official who wilfully harms the property or facilities of a body he works for or a body to which he is connected by virtue of his work, or properties or interests of others entrusted to that body,

shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

The punishment shall be imprisonment for a period no less than (10) ten days and not exceeding a year, if the official causes, by his mistake, severe harm to the mentioned properties or facilities.

Article 217

Whoever misuses or neglects to maintain any public property entrusted to him, or which its maintenance and use fall within his competences, in a manner that disrupts its utilisation, or exposes its safety or the safety of persons to danger, shall be punished by imprisonment for a period no less than (3) three months and not exceeding a year, and a fine no less than (500) five hundred Rial Omani and not exceeding (2,000) two thousand Rial Omani, or one of those two punishments.

Article 218

Every public official who violates, by fraud or any other illegitimate means, the fairness or integrity of a tender or auction connected to any of the bodies stipulated in Article 11 of this Law, shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Article 219

Every public official who obtains or attempts to obtain, for himself or another, profit or benefit, without having the right to it, through a task of his office or on the basis of information that reaches him by virtue of his office, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (3,000) three thousand Rial Omani.

Article 220

Every public official responsible for the preparation, management, or execution of contracting, supply, works, or undertakings related to a State establishment, who obtains for himself or another, personally or by proxy, a commission, profit, or benefit as a result of performing any of the mentioned works shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (5,000) five thousand Rial Omani.

Attempt shall also be punished.

Article 221

Whoever commits fraud in performing all or some of the obligations imposed by a contracting, supply, general works, other contracts, or other undertakings connected to one of the bodies stipulated in Article 11 of this Law, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

The punishment shall be imprisonment for a period no less than (5) five years and not exceeding (10) ten years, if the crime results in severe harm, or if the contract relates to security and defence needs.

Subcontractors, agents, brokers, and consultants shall be punished by the same punishment if the fraud is attributed to their conduct.

Article 222

Whoever violates an estate owned by the State, or by an endowment, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

The punishment shall be imprisonment for a period no less than (3) three years and not exceeding (5) five years if the violation is committed, or facilitated, by a public official by virtue of his office.

In all cases, restitution of the estate and the buildings or crops on it, or restitution of the estate and the removal of such things at the cost of the violator, shall be adjudicated.

Part Six
Crimes Prejudicial to the Course of Justice

Chapter One
False Reporting, Failure to Report, and Refraining from Rendering Assistance

Article 223

Each of the following shall be punished by imprisonment for a period no less than a month and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani:

(a) whoever proceeds to disseminate, using any means, news of the commission of a crime not actually committed, with knowledge that the crime has not been committed.
(b) whoever notifies competent authorities, in any manner, of the occurrence of a crime, danger, incident, or disaster that has not occurred.
(c) whoever notifies competent authorities of matters, relating to a committed crime, that he knows are false.

Article 224

Whoever attributes a crime to a person with knowledge that he did not commit it, or fabricates evidence of him committing the crime, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani, and not exceeding (1,000) one thousand Rial Omani.

If the calumniation results in sentencing the calumniated to punishment, the punishment of the calumniator shall not be less than that. If the calumniation results in the adjudication of the death sentence, and the sentence has been executed, then the punishment of the calumniator shall be the death sentence or life imprisonment.

It shall be an extenuating excuse if the calumniator retracts his calumniation prior to prosecution.

In all cases, the perpetrator shall be responsible for resulting expenses.

Article 225

Whoever knows of the commission of a felony, or the existence of an attempt of its commission, at a time at which it would have been possible to prevent it, and refrains without an acceptable excuse to report it to competent authorities, shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

This Article does not apply to the spouse, ascendants, or descendants of the offender.

Article 226

Whoever wilfully refrains from rendering assistance to persons in danger threatening them, their property, or their honour, and the person refraining to render assistance is capable of rendering it and does not fear danger to himself in rendering it, that person shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 227

Whoever in the course of practising a medical profession examines a deceased or an injured person, and signs are found or circumstances are available that call for suspicion in the cause of death or injury, and does not take initiative to report it to competent authorities, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Chapter Two
Obstruction of Judicial Proceedings and Misleading of Justice

Article 228

Whoever wilfully conceals, tears, destroys, or mutilates a notice issued by a judicial body shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months, and a fine no less than (300) three hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments, if that affects the course of proceedings.

Article 229

Whoever commits, in bad faith, an act that obstructs execution procedures of seized property on the basis of a judicial sentence, whether by transfer, concealment, disposal, destruction, change of its features, or using any other method, shall be punished by imprisonment for a period no less than (3) three months and not exceeding a year.

Article 230

Every competent official who wilfully refrains from, or obstructs, the execution of a judicial sentence, decision, or order after the lapse of (30) thirty days from his warning to execute it, shall be punished by a fine of (100) one hundred Rial Omani to (1,000) one thousand Rial Omani.

Notwithstanding the right of the affected to claim compensation, the official shall be required to pay a weekly fine of (300) three hundred Rial Omani after the lapse of ten days from the date of his conviction and until the execution of the sentence that he refrained from, or obstructed, the execution of. The prosecution shall lapse at any stage if the official takes initiative to execute the sentence.

Article 231

Whoever conceals, destroys, or seizes a document, deed, or any other thing submitted to the investigating authority, or in proceedings before a judicial body, with the intention of misleading justice, shall be punished by imprisonment for a period no less than (3) three months and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Article 232

Whoever alters, with the intention of misleading justice, the status of persons, locations, or effects, conceals a corpse of a deceased or any evidence of a crime, or knowingly provides false information connected to it, shall be punished by imprisonment for a period no less than (3) three months and not

exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Chapter Three
False Testimony, Refraining from Testifying, and Perjury

Article 233

Whoever falsely testifies, denies the truth, or omits all or some of what he knows of an incident before a judicial body or investigating authority, after taking the oath, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

The punishment shall be reduced to half the minimum limit if the testimony is not given under oath.

If the false testimony, on its own, results in the adjudication of punishment, and it is executed, the punishment of the witness shall be no less than that punishment.

Article 234

The following shall be exempt from the punishment for false testimony:

(a) a witness who falsely testifies in the course of a criminal investigation, if he retracts it prior to its utilisation and before he is reported.
(b) a witness who falsely testifies in the course of a trial, if he retracts it prior to the sentencing and before he is reported in the proceedings in question.

Article 235

Whoever is assigned by a judicial body or investigating authority an expert task or a translation task, and wilfully alters the truth through any means, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Article 236

A witness who gives a false testimony shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months if the testimony is given before a non-judicial body.

Article 237

Whoever asks or accepts money, a benefit, or a promise for anything to falsely testify shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

Article 238

Whoever practises a medical profession and asks or accepts, for himself or another, any reward or promise for reward, in return for making a false testimony concerning pregnancy, birth, sickness, disability, or death, or makes such testimony as a result of a plea, a recommendation, or favouritism, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Article 239

Whoever forces, entices, or threatens – using any means – a person to make a false testimony, refrain from making a false testimony, omit a matter, or provide incorrect statements or information before a judicial body, even if his objective is not realised, shall be punished by imprisonment for a period no less than (2) two months and not exceeding (3) three years.

Article 240

Whoever is adjudged to testify before a judicial body, or investigating authority, and refrains from attending, taking the oath, or providing testimony, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months, unless he refrains for an acceptable excuse.

He shall be exempt from punishment if he retracts from refraining prior to the issuance of the sentence in the proceedings in question.

Article 241

Whoever of the opponents is required to take the oath, or has it tendered back at him, and swears falsely, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

The offender shall be exempt if he retracts from the false oath prior to the issuance of the sentence in the proceedings in question.

Chapter Four
Escape of the Accused and Convicts

Article 242

Whoever has been legally arrested and escapes shall be punished by imprisonment for a period no less than a month and not exceeding a year.

If the fugitive is detained or imprisoned, or if the escape is committed by more than one person, by threat, by force, or by violence, the punishment shall be imprisonment for a period no less than (6) six months and not exceeding (3) three years.

If the escape is committed using a weapon, or by a threat to use it, the punishment shall be imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

Article 243

Every official assigned to guard, accompany, or transport an arrested, detained, or imprisoned person, and wilfully enables him to escape, or neglects him in a manner that enables him to escape, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Every official responsible for arresting a person, and wilfully assists his escape, shall be punished by the same punishment.

If the fugitive is accused or convicted for a crime punishable by the death sentence or life imprisonment, the punishment shall be imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Article 244

Every official assigned to guard, accompany, or transport an arrested, detained, or imprisoned person, and that person escapes as a result of the negligence of the official, shall be punished by imprisonment for a period no less than a month and not exceeding a year.

It is permitted to exempt him from punishment if he enables competent authorities to arrest the fugitive or makes him surrender himself within (3) three months from the date of his escape.

If the fugitive is accused or convicted of a crime punishable by the death sentence or life imprisonment, the punishment of the official shall be from (6) six months to (3) three years.

Article 245

Whoever enables an arrested, detained, or imprisoned person to escape shall be punished by imprisonment for a period no less than (3) three months and not exceeding a year.

If the crime is committed by more than one person, by threat, by force, by violence, by using a weapon, by a threat to use it, or if the fugitive is accused or convicted by a crime punishable by the death sentence or life imprisonment, the punishment shall be imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Article 246

Whoever aids a person, using any means, to hide from or to escape justice after he is aware of the commission of a crime or the issuance of an order to arrest, detain, or imprison him shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

Whoever commits such act shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years, if the punishment for the crime committed is the death sentence or life imprisonment.

This Article does not apply to the spouse, ascendants, or descendants of the person aided with his hiding or escape.

Chapter Five
Influencing the Judiciary and Harming its Reputation

Article 247

Whoever attempts to make an official of judicial competence undertake procedures contrary to the law, or to refrain from undertaking procedures required by law, through an order, request, threat, plea, or recommendation shall be punished by imprisonment for a period no less than a month and not exceeding a year.

Article 248

Whoever publicly disregards the respect due for the judiciary in a manner that challenges its integrity, or its adherence to the provisions of law, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Article 249

Whoever publishes any of the following using a means of publicity without permission from the Public Prosecution or competent court, as the case may be, shall be punished by imprisonment for a period no less than a month and not exceeding (2) two years, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani:

(a) news concerning an ongoing investigation or a document of this investigation.
(b) news concerning prosecutions stipulated by law, or decided by the court, to be tried in a secret hearing or to be prohibited from publication.
(c) names or photographs of the accused or convicts.
(d) names or photographs of victims of crimes against honour.

Whoever supplies local or foreign media any of those mentioned in the preceding clauses shall be punished by the same punishment.

Chapter Six
Breaking of Seals and Destruction of Official Notices

Article 250

Whoever proceeds to break, remove, destroy, or alter, without having the right to, seals placed by an order of a judicial body or competent authorities shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

If the perpetrator is the guard or the person assigned to preserve those seals, he shall be punished for a period no less than (6) six months and not exceeding (2) two years, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Article 251

Whoever proceeds to tear, remove, or destroy official notices shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

Article 252

Whoever removes, destroys, or seizes, without having the right to, papers, documents, or effects that have been seized judicially or administratively, deposited on the basis of a judicial or administrative order or sentence in locations designated for their preservation, or handed over to a person assigned to preserve it, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

If the act is committed by violence, removal, or climbing, or if the perpetrator is the guard or the person assigned to preserve such effects, the punishment shall be for a period no less than (3) three years and not exceeding (5) five years.

If the removal, destruction, or seizure occurs as a result of the negligence of the person with whom the papers or documents are in custody, he shall be punished for a period no less than a month and not exceeding (6) six months, and a fine no less than (300) three hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Part Seven
Offences Against Public Morality

Chapter One
Prostitution and Debauchery

Article 253

Whoever is found soliciting prostitution or debauchery to passers-by in a public place by words, signs, or any other means shall be punished by imprisonment for a period no less than (6) six months and not exceeding a year.

Article 254

Whoever incites, lures into, seduces to, entices to, or assists a person in, using any means, prostitution or debauchery, and this leads to the commission of the act, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

If the crime is committed by duress, threat, or trickery, if the assaulted has not completed (18) eighteen years of age, or if the perpetrator is one of his ascendants, responsible for his upbringing or caretaking, or has authority over him, the punishment shall be imprisonment up to (10) ten years.

Article 255

Each of the following shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani:

(a) whoever establishes or manages a venue for prostitution or debauchery, or assists by any means, in its establishment or management.
(b) whoever owns a house or establishment, or is responsible for its management, and rents it with the knowledge that it will be used for prostitution or debauchery.
(c) whoever knowingly works or resides in a venue prepared for prostitution or debauchery.
(d) whoever makes his living, or some of it, on what others earn through prostitution or debauchery practised under his protection or by the influence of his control over it.

Whoever is found present in a place prepared for prostitution or debauchery with the intention to commit it shall be punished by imprisonment for a period no less than a month and not exceeding a year.

In all cases, closure of the venue shall be adjudicated.

Article 256

Whoever practises prostitution or debauchery in return for a fee indiscriminately shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Chapter Two
Offences Against Honour

Article 257

Whoever engages in sexual intercourse, without consent, with a male or female, shall be punished by imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years.

If the victim is under (15) fifteen years of age, if the victim suffers from physical or mental disability that renders him unable to resist, if the act causes chronic venereal disease, if the act leads to his death, if the offender is responsible for his upbringing, supervision, caretaking, or is someone who has authority over him, if the victim is a paid employee of his or of any of those previously mentioned, or if the crime is committed by (2) two persons or more, the punishment shall be life imprisonment.

Article 258

Whoever sexually assaults, without consent, a male or female shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

If the victim suffers from physical or mental disability that renders him unable to resist, if the offender is responsible for his upbringing, supervision, caretaking, or is someone who has authority over him, or if the victim is a paid employee of his or of any of those previously mentioned, the punishment shall be no less than (5) five years and not exceeding (7) seven years.

If the offender is a *Mahram* of the victim, the punishment shall be no less than (7) seven years and not exceeding (10) ten years.

Article 259

He who engages in sexual intercourse with a female, with her consent, in the absence of a contract of marriage, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years. The female shall be punished by the same punishment.

If either of them is married, the punishment shall be no less than (2) two years for both of them. Knowledge of the marriage is presumed unless established otherwise.

Criminal prosecution shall not commence against the perpetrator, whether man or woman, except on the basis of a complaint by a spouse or guardian. If the perpetrator has no spouse or guardian in the State, it is permitted for the Public Prosecution to commence proceedings or order deportation from

the country. In all cases, it is permitted for the spouse or guardian to withdraw the case. The withdrawal of one of the complainants shall result in the termination of criminal prosecution and stay of execution of the punishment.

Article 260

If the crime provided in Articles 257 and 259 of this Law is committed between permanent *Mahrams,* the punishment shall be the death sentence.

Article 261

Every male who engages in sexual intercourse with another male, with his consent, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years. The male who accepts this for himself shall be punished by the same punishment.

Article 262

Whoever engages in lustful acts with a person of the same sex shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Criminal proceedings shall not commence against the perpetrator, whether man or woman, except on the basis of a complaint by a spouse or guardian. If the perpetrator has no spouse or guardian in the State, it is permitted for the Public Prosecution to commence proceedings or order deportation from the country.

In all cases, it is permitted for the spouse or guardian to withdraw the case. The withdrawal of one of the complainants shall result in the termination of criminal prosecution and stay of execution of the punishment.

Article 263

Sexual intercourse shall be deemed complete upon the penetration of the male organ, however slight, into the genital or anal opening whether or not accompanied by the ejaculation of semen.

Article 264

For the purposes of the provisions of this Chapter, consent is not recognised if the victim has not completed (18) eighteen years of age.

Chapter Three
Indecent Acts

Article 265

Whoever publicly commits or utters an indecent act or statement shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

Article 266

Every male who commits the following shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments:

(a) whoever harasses a female, by word or conduct, in a manner that offends her modesty.
(b) whoever intrudes on the solitude of a female.
(c) whoever impersonates a woman or enters, disguised, a venue dedicated to women or a venue whose entry is forbidden to non-women at the time.
(d) whoever publicly appears in the likeness of women in his dress or guise.

Article 267

Whoever creates, distributes, publishes, or displays, even if not done in public, a book, a publication, drawings, photographs, films, symbols, or other effects offending modesty or violating public morals, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

Article 268

Whoever uses wired or wireless communication devices, or electronic media, statements, photographs, applications, or any other means, to communicate statements, photographs, or applications contrary to public morals or ethics shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a month, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishment.

Part Eight
Crimes Against Religion, Family, and Society

Chapter One
Crimes Against Religion

Article 269

Whoever commits any of the followings acts shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years:

(a) disrespecting or offending the divine verbally, in writing, by drawing, by gesturing, or by using any other means.
(b) offending, distorting, or desecrating the Holy Quran.
(c) offending the religion of Islam or any of its rites, or insulting an Abrahamic religion.
(d) disrespecting or offending any of the prophets verbally, in writing, by drawing, by gesturing, or by using any other means.
(e) sabotaging or desecrating buildings, or any of their contents, if prepared to conduct religious rites of Islam or those of other Abrahamic religions.

Article 270

Whoever, establishes, founds, organises, or manages a group, association, authority, organisation, or a branch thereof, aimed at opposing or disparaging the pillars upon which the religion of Islam is based, or promoting or calling for another shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

Whoever joins any of those bodies, participates in them, or assists them by any means, with knowledge of their objectives, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Article 271

Whoever calls or participates in the preparation of a meeting with the purpose of opposing or disparaging the pillars upon which the religion of Islam is based, or calling for another religion shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Whoever obtains or receives funds directly or indirectly from a person or authority inside the State or abroad, shall be punished by the same punishment with the confiscation of obtained funds, if that occurs with the intention of committing one of the acts stipulated in the preceding Paragraph.

Article 272

Whoever obtains or possesses, with the intention of publishing or promoting, documents, publications, or recordings, or any other effects, containing an opposition or disparagement of the pillars upon which the religion of Islam is based, or containing a call to another, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Whoever obtains or possesses, using any means of publication, recording, or broadcast designated for promoting thought, an association, an authority, or an organisation aimed at one of the purposes stipulated in the preceding Paragraph, with knowledge thereof, shall be punished by the same punishment.

Article 273

Whoever produces, creates, sells, displays for sale or circulation, obtains, or possesses products, goods, publications, tapes, or any other material carrying drawings, logos, words, symbols, signs, or anything else offensive to the religion of Islam or another Abrahamic religion, or advertises them with knowledge thereof, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 274

Any offender who takes the initiative – in any of the crimes stipulated in the preceding Articles of this Chapter – to notify competent authorities of the crime prior to its detection, shall be exempt from punishment. If the notification occurs after the detection of the crime, the court is permitted to exempt the offender from punishment if the notification leads to the arrest of any of the offenders.

Article 275

In addition to the punishments stipulated in the preceding Articles of this Chapter, dissolution, closure, and confiscation shall be adjudicated.

Article 276

Whoever desecrates the sanctity of the dead, or desecrates or violates the sanctity of a place designated for the burial of the dead shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a year.

Article 277

Whoever flagrantly consumes food, drink, or other substances that break fast, in the daytime in Ramadhan in a public place, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months.

Chapter Two
Crimes Against Family and Society

Article 278

Whoever is responsible for the care of a child who has not completed (18) eighteen years of age or a person unable to take care of himself because of his physical, psychological, or mental condition, and refrains from, or neglects or fails in, taking care of him, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 279

A father, or a mother in the absence of a father capable of providing support, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments, if either of them abandon without subsistence an offspring of theirs incapable of legitimate earning.

An offspring capable of providing support shall be punished by the same punishment if he abandons without subsistence a parent incapable of earning.

Article 280

Whoever has a final sentence issued against him to provide support, or nursing, breastfeeding, or housing fees, and refrains from providing on the set date, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a year.

The prosecution shall lapse, or the execution of the sentence shall be stayed, by way of fulfilment or withdrawal.

Article 281

Whoever abducts, conceals, substitutes, or falsely attributes a newborn to someone other than its parents, shall be punished by imprisonment for a period no less than (5) five years and not exceeding (15) fifteen years.

Article 282

Whoever forcefully takes a minor, even with his consent, away from a person who has guardianship or custodianship over him, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

Article 283

Whoever fails to comply with an order of a judge to bring in a minor, or delays bringing or surrendering him shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

In all cases, he shall be exempt from punishment if he surrenders the minor prior to the issuance of the sentence.

Article 284

Whoever wilfully exposes to danger a child who has not completed (18) eighteen years of age, or a person unable to protect himself because of his physical, psychological, or mental condition, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years.

If he abandons the child or the unabled in a deserted place, the punishment shall be imprisonment for a period no less than (6) six months and not exceeding (3) three years. If the person who abandons the child or the unabled is one of their ascendants, or those legally responsible for their care, the punishment shall be aggravated provided it does not exceed the double.

If the child or the unabled is severely injured, the punishment shall be imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

If either of them dies, the punishment shall be imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years.

Article 285

Whoever possesses, manufactures, brings or deals in alcohol, arranges or prepares a venue for the consumption of alcohol or intoxicants, or undertakes any activity connected to them without a licence from competent authorities, shall be punished by imprisonment for a period no less than (6) six

months and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Confiscation of alcohol, instruments, substances, and means used in their production or transportation, and closure of the venue in which the crime is committed, shall be adjudicated.

Article 286

Whoever consumes alcohol or an intoxicating drink in a public place or is found in a state of intoxication in a public place, and whoever causes disturbance or nuisance to others, or disturbs the public peace, as a result of his intoxication, shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 287

Whoever offers a person who has not competed (18) eighteen years of age alcohol or an intoxicating drink, or incites him to consume it, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

It is permitted to adjudicate the closure of the venue or the place in which the crime is committed.

Article 288

Gambling games are those in which it is agreed that the loser provides the winner some consideration.

Article 289

Whoever arranges, prepares, opens, or manages a place for gambling, or organises any of its games, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 290

Whoever plays any gambling game shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 291

In all cases, confiscation of materials, funds, and instruments obtained or used in the crimes stipulated in Articles 289 and 290 of this Law shall be adjudicated.

It is permitted to adjudicate the closure of the venue or the place in which the crime is committed.

Article 292

The following shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments:

(a) whoever digs in a public road, or places substances or effects that obstruct its passage or render it unsafe.
(b) whoever promotes his goods on a public road using inappropriate phrases or disturbing sounds.
(c) whoever removes, destroys, transports, or extinguishes a sign or lamp designated to light public roads, buildings, venues, or spaces, or changes their direction, or destroys speed detection devices.
(d) whoever neglects to caution in front of works authorised to be carried out in public places and roads.
(e) whoever destroys any means of caution or guidance placed in work sites.
(f) whoever casts solid or liquid substances at passers-by, even if that does not result in harm.
(g) whoever places an advertisement in a public place without authorisation from competent authorities, or removes or destroys a placed advertisement.

Article 293

The following shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments:

(a) whoever casts in a watercourse a carcass or substances that are filthy or harmful to health.
(b) whoever casts garbage or substances of any kind on public roads or in public places.
(c) whoever urinates or defecates on public roads or in public places, in an immodest manner.
(d) whoever causes the leaking of filthy gases, fumes, water, or other substances that cause pollution.
(e) whoever neglects cleaning or repairing stoves, furnaces, or laboratories in which fire is used.

Article 294

The following shall be punished by imprisonment for a period no less than a month and not exceeding (3) three months, and a fine no less (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments:

(a) whoever appears on public roads or in public places in an immodest manner or contrary to societal traditions and customs.
(b) whoever publicly swears or curses on public roads or in public places.
(c) whoever disturbs public peace or tranquillity by unjustified shouting or noise, or by using a device or any other means capable of disturbing others or disrupting their comfort.
(d) whoever fails to undertake adequate precaution to prevent danger or harm caused by an animal in his possession or under his responsibility, or releases it, if that exposes utilities or the safety of individuals to danger.

Article 295

Whoever is found in a public place wearing a half or full face mask, or using any other means, with the intention of concealing his features or identity, shall be punished by imprisonment for a period no less than a month and not exceeding a year.

Article 296

The following shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a month, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments:

(a) whoever neglects to register, or refrains from registering, the names of guests of hotels, or their equivalent, in the designated registry.
(b) whoever refrains from, without having the right to, accepting a currency of the country or its coins at trading value, or deals in them with contempt.
(c) whoever unjustifiably refrains from providing aid and assistance in the event of natural accidents, disturbances, or disasters, or in the event of a commission of a crime or the execution of a judicial order or sentence.

Chapter Three
Begging

Article 297

Whoever is found begging in public or private mosques, roads, places, or venues, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than

(50) fifty Rial Omani and not exceeding (100) one hundred Rial Omani, or one of those two punishments. The court may confiscate funds in his possession at the time of his arrest.

If the convict repeats the begging, he shall be punished by imprisonment for a period no less than (6) six months and not exceeding (2) two years.

Whoever establishes that he begged out of necessity, or that he is incapable of earning and has no other source of income, shall be exempt from punishment.

In all cases, it is permitted to adjudicate the deportation of the beggar if he is an alien.

Article 298

Whoever uses a juvenile or surrenders him to another, with the intention to beg, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years, and a fine no less than (50) fifty Rial Omani and not exceeding (100) one hundred Rial Omani, or one of those two punishments.

The punishment stipulated in the preceding Paragraph shall be doubled if the perpetrator is a guardian or custodian of the juvenile, or if he is responsible for his supervision or care.

Chapter Four
Collection of Money From the Public Without Licence

Article 299

Whoever calls for donation, or collects money from the public, using any means, without a licence from competent authorities, shall be punished by imprisonment for a period no less than a month and not exceeding (3) three months, and a fine no less than (200) two hundred Rial Omani and not exceeding (600) six hundred Rial Omani, or one of those two punishments. The court may adjudicate the confiscation of funds obtained from the crime.

If the crime is repeated, the punishment stipulated in the preceding Paragraph shall be aggravated provided it does not exceed the double.

Article 300

Whoever collects money from the public, using any means, and transfers them abroad, without a licence from competent authorities, shall be punished by imprisonment for a period no less than (3) three months and not exceeding a year, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (2,000) two thousand Rial Omani, or one of those two punishments. The court may adjudicate the confiscation of funds obtained from the crime.

If the crime is repeated, the punishment stipulated in the preceding Paragraph shall be aggravated provided it does not exceed the double.

Part Nine
Crimes Against Human Life and Safety

Chapter One
Wilful Murder and Suicide

Article 301

Whoever wilfully kills a human shall be punished by life imprisonment. In the application of the provisions of this Law, every infant born alive from the womb of its mother shall be deemed human.

Whoever kills out of necessity, or under duress, in accordance with Article 51 of this Law, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years.

Article 302

The punishment shall be the death sentence if any of the following cases are present in the incident of wilful murder:

(a) premeditation or advanced planning.
(b) if the murder is committed against an ascendant of the offender.
(c) if the murder is committed using torture or using poisonous or explosive substances.
(d) if the murder is in preparation for a felony or misdemeanour or is accompanied with or connected thereto.
(e) if the murder is committed against a public official in the course of, because of, or by reason of performing his job.
(f) for abhorrent reasons.
(g) against (2) two or more persons.

The death sentence punishment shall be substituted with the punishment of life imprisonment, or imprisonment for a period no less than (5) five years and not exceeding (15) fifteen years, if the heirs of the victim give their pardon or accept the *Diyah* at any stage of prosecution or prior to the completion of the execution.

Article 303

A woman who wilfully kills a child she conceives in incest, immediately upon its birth out of shame, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Article 304

Whoever incites another to commit suicide, or assists him in killing himself, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years, if that results in death.

If the person who commits suicide has not completed (18) eighteen years of age, or is in a state of diminished perception or volition, the offender shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

If the person who commits suicide is incapable of choice or perception, the offender shall be punished by imprisonment for a period no less than (7) seven years and not exceeding (15) fifteen years.

In all cases, if death does not occur, and harm results from the attempt, the punishment shall be for a period no less than a month and not exceeding a year.

Article 305

Whoever wilfully kills a person out of mercy, and by insistence from the victim, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

Chapter Two
Assault Against Human Safety

Article 306

Whoever assaults the safety of a human, using any means, and does not intend for that to kill him, but the assault results in death, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

If the act is accompanied by one of the cases stipulated in Article 302 of this Law, the punishment shall be no less than (7) seven years.

Article 307

Whoever wilfully causes a permanent disability to a human shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

Every injury that permanently causes the severance or disjointedness of an organ, amputation of a part of it, loss or diminishment of its function, or complete or partial loss of a sense, shall be deemed a permanent disability. Every severe disfigurement without a possibility of rectification shall be deemed a disability.

Article 308

Whoever assaults the safety of a human, using any means, and the assault results in his illness or hinders his ability to undertake his work for a period exceeding (30) thirty days, shall be punished by imprisonment for a period no less than (3) three months, and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 309

Whoever assaults the safety of a human, using any means, and the assault does not result in an illness or an inability to work for a period exceeding (30) thirty days, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

Article 310

If multiple persons participate in a brawl that results in death or harm, and it is impossible to identify the perpetrator, every participant shall be punished by half the punishment legally prescribed for the committed crime.

If the crime carries a death sentence, imprisonment for a period of (7) seven years, at least, shall be adjudicated against the criminals. If the crime carries life imprisonment, imprisonment for a period of (10) ten years, at most, shall be adjudicated against the criminals. The punishment shall be aggravated in accordance with Article 83 of this Law for those who directly cause the brawl.

Article 311

Whoever causes, by his mistake, the death of a human shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Article 312

Whoever causes, by mistake, the harm of a person, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments, if the harm does not cause illness or hindrance to work for a period exceeding (30) thirty days.

If the illness or hindrance exceeds the period of (30) thirty days, the punishment shall be imprisonment for a period no less than (3) three months and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 313

Prosecution depends on complaint by the victim. The prosecution shall lapse, or the execution of the sentence shall be stayed, by withdrawal of the complaint in regard to the crimes stipulated in Articles 308, 309, and 312 of this Law.

Article 314

The punishments stipulated in Articles 311 and 312 of this Law shall be aggravated provided they do not exceed the double, if the crime is committed as a result of the violation by the offender of the principles imposed by his profession, office, or craft, if he is under the influence of alcohol or intoxicants, if the act results in death, permanent disability, or the injury of more than (3) three persons, or if he refrains from assisting the victim or calling assistance for him despite his ability to do so.

Article 315

Every woman who carries out a self-induced abortion, using any means, or enables another to do so with her consent, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

If, out of shame, the woman carries out a self-induced abortion, or enables another to do so, the punishment shall be imprisonment for a period no less than (10) ten days and not exceeding (3) three months.

Article 316

Whoever proceeds to carry out an abortion for a woman using any means, with her consent, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

If the offender is a practitioner of a medical profession, the punishment shall be imprisonment for a period no less than (3) three years and not exceeding (5) five years.

Article 317

Whoever carries out abortion for a woman, with her consent, and the abortion results in her death, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

If the abortion is carried out, with her consent, by a practitioner of a medical profession, and that results in her death, the punishment shall be imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Article 318

Whoever carries out abortion for a woman without her consent shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

If the offender is a practitioner of a medical profession, the punishment shall be imprisonment for a period no less than (5) five years and not exceeding (7) seven years.

If the non-consensual abortion leads to her death, the punishment shall be no less than (5) five years and not exceeding (10) ten years. If the offender is a practitioner of a medical profession, the punishment shall be a period no less than (7) seven years and not exceeding (15) fifteen years.

Article 319

Whoever assaults a pregnant woman, using any means, with knowledge of her pregnancy, and the assault leads to her abortion, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

Article 320

Whoever arranges or manages a venue for abortion, or manufactures, sells, possesses or obtains with the intention to sell, promotes, or facilities the use of medicines, substances, or any means for abortion, in circumstances not authorised by law, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

Article 321

Whoever wilfully causes, using any means, the transmission of acquired immune deficiency syndrome (AIDS) to an uninfected person, shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

If the act results in the death of the victim, the punishment shall be life imprisonment.

If the infection is transmitted by the mistake of the perpetrator, the punishment shall be imprisonment for a period no less than a year and not exceeding (3) three years.

Part Ten
Crimes Against Human Liberty and Dignity

Chapter One
Arrest, Kidnap, and Detainment of Persons

Article 322

Whoever arrests or detains a person, or deprives him of his liberty, using any means in violation of the law, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years. Whoever deprives another of his personal liberty by kidnap shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years.

The punishment shall be imprisonment for a period no less than (7) seven years and not exceeding (15) fifteen years, if the kidnap, arrest, detainment, or deprivation is undertaken in any of the following circumstances:

(a) if the act is committed by a person wearing – without having the right to – a uniform, carries a distinctive official mark of a public official, assumes a false capacity, or presents a forged order for the arrest, detainment, or imprisonment claiming its issuance from a competent authority.
(b) if the act is accompanied by the use of trickery, force, threat to kill, or physical or psychological torture.
(c) if the act is committed by (2) two or more persons or by one person carrying a weapon.
(d) if the period of kidnap, arrest, detainment, or deprivation of liberty exceeds (15) fifteen days.
(e) if the purpose of the act is to acquire a financial return, assault the honour of the victim, make him practise prostitution, exact revenge on him or another, cause harm to him, or make him commit a crime.
(f) if the act is committed against a public official in the course of, because of, or by reason of performing his job.
(g) if the victim is female, a minor, insane, an imbecile, or lacks perception.

Whoever conceals a person kidnapped, arrested, detained, or deprived of liberty, with knowledge thereof, shall be punished by the punishment prescribed in this Article, as the case may be.

Article 323

It is permitted to grant the offender an extenuating excuse, if the victim is not harmed and the offender voluntarily releases him before the lapse of (24) twenty-four hours, or if he voluntarily proceeds to competent authorities prior to the discovery of the location of the victim, guides to this location, and identifies other offenders – if any – and that results in the rescue of the victim unharmed.

Chapter Two
Threat, Insult, and Defamation

Article 324

Whoever threatens another person, using any means, to commit a misdemeanour or harmful act on that person or someone that concerns him, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

If the threat is to commit a felony, the punishment shall be imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Article 325

Whoever threatens another person using a weapon, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years.

Article 326

Whoever defames another by attributing to him, using a means of publicity, an incident that subjects him to ridicule, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 327

Whoever publicly insults another, by directing at him phrases that violate his honour or dignity, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months, and a fine no less than (200) two hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 328

If the defamation or insult occurs in confrontation with the victim, without publicity, he shall be punished by imprisonment for a period no less than (10) ten days, and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishment.

Article 329

If the defamation or insult occurs against a public official in the course of performing his job, by reason of it, or because of his affiliation to it, if it violates his honour or reputation, or if the act occurs by publication in a newspaper, publication, or other means, he shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (300) three hundred Rial Oman and (1,000) one thousand Rial Omani, or one of those two punishments.

Article 330

Whoever publishes news, photographs, or comments that violate the private or family life of persons, even if true, if undertaken without the consent of those concerned, shall be punished by imprisonment for a period no less than a month and not exceeding a year.

Article 331

Whoever has knowledge of a secret, by virtue of his profession, craft, or job, that he discloses outside the circumstances authorised by law, or uses it for his personal benefit, or the benefit of another person, shall be punished by imprisonment for a period no less than a month and not exceeding a year, if he is not authorised by the concerned person.

Article 332

Whoever violates the sanctity of the private life of persons, outside the circumstances authorised by law, by committing any of the following acts, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months:

(a) opening a private letter or telegram addressed to another person.
(b) listening in on a phone call.
(c) recording or transmitting conversations using a device of any kind.
(d) capturing or transmitting photographs of a person or persons using a device of any kind.

Article 333

Acts committed in the following cases shall not be deemed instances of insult or defamation:

(a) if the perpetrator establishes the truthfulness of the incident if it is directed at a public official and the incident is connected to his job.
(b) notification of judicial or administrative authorities, in good faith, of a matter that demands to hold the perpetrator accountable.
(c) defamation or insults in the oral or written defence of litigants, before courts or investigation authorities, within the necessary limits of the right to defence.

Article 334

Prosecution of the crimes stipulated in this Chapter shall be based on complaint by the victim. The prosecution shall lapse or the execution of sentence shall be stayed by withdrawal of the complaint.

This provision does not apply to Article 329 of this Law.

Part Eleven
Crimes Against Property

Chapter One
Theft and Property Extortion

Article 335

Whoever commits a theft crime, in which the following are collectively present, shall be punished by life imprisonment:

(a) committed at night.
(b) committed by (2) two or more persons.
(c) one of the offenders carries a weapon.
(d) committed in an inhabited place or one of its annexes, and the offender enters by jumping a fence or climbing a wall, by breaking a door or the like, by using fabricated keys, by impersonating an official capacity, by claiming that he is undertaking a public office, by wearing the uniform of a police officer or public official, by presenting a forged order claiming its issuance from competent authorities, by colluding with a resident of the place, or by using any other illegitimate means.
(e) the theft is committed by duress or the threat to use a weapon.

Article 336

Whoever commits a theft crime on a public road, or inside a mode of public of transportation, shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years, if committed in any of the following cases:

(a) by (2) two or more persons, and at least one of them carries a weapon or it is committed by duress.
(b) by a single person carrying a weapon, using duress, or by threatening to use a weapon.

Article 337

Whoever commits a theft crime in any of the following cases shall be punished by imprisonment for a period no less than (3) three years and not exceeding (7) seven years:

(a) by duress or the threat to use a weapon.
(b) at night in a place inhabited by a person carrying a weapon.
(c) at night by (2) two or more persons and one of them carries a weapon.
(d) committed in an inhabited place or one of its annexes, and the offender enters by jumping a fence or climbing a wall, by breaking a door or the like, by using fabricated keys, by impersonating an official capacity, by claiming that he is undertaking a public office, by wearing the uniform of a police officer or public official, by presenting a forged order claiming its issuance from competent authorities, by colluding with a resident of the place, or by using any other illegitimate means.

Article 338

Whoever commits a crime of theft of weapons or ammunition of the armed or security forces shall be punished by imprisonment for a period no less than (3) three years and not exceeding (10) ten years.

If the crime is committed in one of the cases stipulated in Article 337 of this Law or in wartime or disaster, the punishment shall be imprisonment for a period no less than (7) seven years and not exceeding (15) fifteen years.

Article 339

Whoever commits a crime of theft of equipment or tools designated for use in health facilities, communication, transportation, the generation or connection of electricity, water, or waste water, or tools for the extraction or transportation of oil or gas, established or authorised to be established for public benefit shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years.

If the crime is committed in one of the cases stipulated in Article 340 of this Law, the punishment shall be imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Article 340

Whoever commits a theft crime in any of the following cases, shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani:

(a) at night.
(b) by a person wearing a full or half face mask or carrying a weapon.

(c) by a hired servant, stealing property from the house of his employer, or from another house to which he accompanied his employer to.
(d) by a servant, worker, or trainee, stealing the property of the employer or tools from the place in which he works or trains.

Article 341

Whoever commits a theft crime or acts of looting during wartime, internal disturbances, the sinking of a vessel, the crash of an aircraft, or any other disaster shall be punished by imprisonment for a period no less than (5) five years and not exceeding (10) ten years.

Article 342

Whoever commits a theft crime in any of the following cases, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years:

(a) in a place designated for worship.
(b) in an inhabited place, a place designated for residence, or one of its annexes.
(c) in a mode of transportation, in its stations, or in a seaport or airport.
(d) by (2) persons or more.

Article 343

Whoever commits a theft crime in which the circumstances or cases stipulated in the preceding Articles of this Chapter are absent, shall be punished by imprisonment for a period no less than a month and not exceeding (2) two years. If an effect is appropriated without the consent of the owner with the intention of using it and immediately returning it, or if the theft is committed on effects the value of which does not exceed (50) fifty Rial Omani, the punishment shall be imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (20) twenty Rial Omani and not exceeding (50) fifty Rial Omani, or one of those two punishments, on the basis of a complaint by the harmed.

Article 344

Whoever misappropriates – without having the right to – energy or a service of economic value such as water, electricity, fuel, gas, communication, or the like, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Article 345

Whoever uses a vehicle owned by another without the consent of its owner or of the holder of the right to use it, shall be punished by imprisonment for a period no less than a month and not exceeding (2) two years, on the basis of a complaint by the harmed.

Article 346

Whoever seizes, by force or by threat, a deed proving or creating a debt, disposal, or patent, a deed of moral value, a paper proving the existence of a legal or social status, or whoever forces someone by duress or threat to sign, stamp, or fingerprint any of the mentioned papers, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years.

Article 347

Whoever makes another surrender money, or any other thing, by accusing him, or someone that concerns him, of committing a crime, by threatening to make such accusation, or by threatening to expose to others photographs, records, or recordings that the victim does not wish for others to know of, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

Article 348

The punishment for attempting a misdemeanour stipulated in this Chapter shall not exceed half the maximum limit prescribed for the complete crime.

Chapter Two
Fraud

Article 349

Whoever obtains from another an illegitimate benefit for himself or another by using fraudulent means, or by assuming a false name or untrue capacity, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishment. The punishment shall be aggravated provided it does not exceed the double, if the fraudulent act is committed against a person under (18) eighteen years of age, or against an adult not in full of possession of his mental faculties.

Article 350

Whoever disposes of a movable property, or an estate, that he knows is not owned by him and is one to which he does not have a right to dispose of, or that he previously disposed of or contracted in respect of, and that causes harm to others, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years. The punishment shall be aggravated provided it does not exceed the double, if the crime is committed against a minor or his equivalent.

Article 351

Whoever exploits the desire, need, or inexperience of a minor and obtains from him, in detriment to his interest or the interest of another, movable property, a deed establishing debt or acquittance, or the annulment, destruction, or modification of such deed, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years.

If the perpetrator is a guardian, custodian, or curator of the victim, one entrusted in any capacity to care for his interests, or one with authority over him, whether by virtue of law or by virtue of a sentence or an agreement, the punishment shall be imprisonment for a period no less than a year and not exceeding (5) five years.

Article 352

Whoever consumes food or drink in a designated venue, occupies a room or more in a hotel or the like, rents a mode of transportation designated for rental, or obtains fuel for a mode of transportation, with knowledge that it is impossible for him to pay the cost or fare, unjustifiably refrains from paying what he owes for this, or flees without fulfilment, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 353

The punishment for attempting the crimes stipulated in this Chapter shall not exceed half the maximum limit prescribed for the crime.

Article 354

If there are multiple victims, the punishments provided in this Chapter shall be doubled one or more times.

Article 355

Public prosecution shall not commence against a person who commits any of the crimes stipulated in Chapters One and Two of this Part that are harmful to his spouse, ascendants, or descendants, except on the basis of a complaint by the victim.

Chapter Three
Cheque Crimes

Article 356

Whoever commits any of the following acts shall be punished by imprisonment for a period no less than a month and not exceeding (2) two years, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani:

(a) gives a cashable cheque not met with an existing balance, the balance of which is less than the value of the cheque, or the account is closed.
(b) withdraws, after giving the cheque, all or part of the consideration, so that the remainder does not fulfil its value.
(c) orders the drawee not to cash the cheque.
(d) writes or signs the cheque in a manner that prevents its cashing.
(e) endorses or delivers to another a cheque payable to its carrier, with the knowledge that it is not met with consideration sufficient to fulfil its full value, or that it is non-cashable.

In all cases, the court shall oblige the convict of the crime to pay the value of the cheque and expenses incurred by the beneficiary, on the basis of a complaint by those concerned.

Article 357

Whoever receives, or makes another receive, a cheque with knowledge that it does not have sufficient consideration to fulfil its full value or that it is non-cashable, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 358

The drawee shall be punished by a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani if it determines, in bad faith, the absence of an existing and cashable balance or the existence of consideration less than the available balance, or if it refrains from paying the cheque without a legitimate reason.

Article 359

The prosecution for the crimes stipulated in this Chapter shall be on the basis of complaint by the victim. The prosecution shall lapse by fulfilment, before its submission to the court, or the execution of the sentence shall be stayed by withdrawal.

Chapter Four
Breach of Trust

Article 360

Whoever is handed money, or any other movable property, as a loan, deposit, in agency, lease, mortgage, or is entrusted with it in any manner, and proceeds to conceal, deny, embezzle, dissipate, or destroy it, shall be punished by imprisonment for a period no less than (3) three months, and not exceeding (3) three years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 361

Whoever finds lost property, and refuses to return it to its owner, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments.

Article 362

The following shall be punished by imprisonment for a period no less than (3) three months and not exceeding (3) three years, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments:

(a) whoever misappropriates, with the intention to own, a property that falls into his possession by mistake, with his knowledge of this.
(b) whoever embezzles movable property, or an estate, judicially or administratively seized, if he is a guard of it, dissipates, destroys, conceals, disposes of it, or takes action to obstruct the execution thereof, or whoever disposes of an estate judicially or administratively seized, or takes action to obstruct the execution thereof if he is a guard of it.
(c) whoever is entrusted with a paper or document submitted to any judicial or administrative body and he wilfully conceals or takes it without having the right to.

Article 363

If there are multiple victims, the punishments stipulated in this Chapter shall be doubled one or more times.

Prosecution of the crimes stipulated in this Chapter shall be based on complaint by the victim. The prosecution shall lapse or the execution of adjudication shall be stayed by withdrawal of the complaint.

In all cases, the convict shall be obliged to return the effects seized or concealed.

Chapter Five
Concealment of Effects Obtained from the Crime

Article 364

Whoever conceals property or effects obtained from crime, with knowledge thereof, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

Article 365

The offender shall be exempt from the punishment stipulated in Article 364 of this Law if he takes initiative in notifying competent authorities of the crime from which property and effects were obtained, and of the perpetrators, prior to its detection.

If the notification occurs after the detection of the crime, the court is permitted to exempt him from the punishment if the notification leads to the arrest of any of the offenders or the detection of other crimes.

Chapter Six
Sabotage and Destruction

Article 366

Whoever wilfully proceeds to commit any of the following shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (500) five hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments:

(a) the demolition or destruction of buildings, properties, or establishments designated for public benefit or decoration, or those of traditional, cultural, commemorative, or artistic value.

(b) the shutting in of wells, aflaj, or channels designated for irrigation, or the commission of any act that prevents the flow of water from its sources.
(c) the cutting or destruction of trees or plants implanted in roads, public squares, markets, or mosques.

The punishment shall be aggravated provided it does not exceed the double, if the crime is committed by (3) three or more persons.

Article 367

Whoever demolishes, destroys, or sabotages – wilfully – immovable or movable property owned by another, makes it unfit for use for its designated purpose, diminishes its value or benefit, or disables it in any manner, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years, and a fine no less than (200) two hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

The punishment shall be aggravated provided it does not exceed the double, if the crime is committed by (3) three or more persons.

Article 368

Whoever wilfully harms the property of another by cutting, uprooting, or destroying a tree, a growing crop, any plant, or a sowed field, or spreads harmful substances in it, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

The punishment shall be aggravated provided it does not exceed the double, if the crime is committed by (3) three or more persons.

Article 369

Whoever demolishes, removes, sabotages, or moves a wall, fence, or marking designated for the control or determination of boundaries, areas, or lands, or designated for the separation of property, if the intention is to harm others or spoil surveying operations, shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

The punishment shall be aggravated provided it does not exceed the double, if the crime is committed by (3) three or more persons.

Article 370

Whoever violates a land or building of another with the intention to seize or exploit it, without having the right to, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years, and a fine no less than (300) three hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

The punishment shall be aggravated provided it does not exceed the double, if the act is committed by the threat of a weapon or if (3) three or more persons participate in it.

Chapter Seven
Violation of Sanctity of Residences and Private Property

Article 371

Whoever enters an inhabited place or one of its annexes, without the consent of the holder of the right to prevent his entry, in cases outside those permitted by law, shall be punished by imprisonment for a period no less than (3) three months and not exceeding (2) two years.

The punishment shall be imprisonment for a period no less than a year and not exceeding (3) three years, if the act is committed at night by breaking, jumping a fence, or climbing, if the offender carries a weapon, or if the act is committed by (2) two or more persons or by a person impersonating an official capacity or claiming to undertake a public function.

Article 372

Whoever legally enters an estate and remains in it, after the purpose for which he entered no longer exists, against the will of the holder of the right to remove him, shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani.

Article 373

The following shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a month, and a fine no less than (100) one hundred Rial Omani and not exceeding (300) three hundred Rial Omani, or one of those two punishments:

(a) whoever enters, without having the right to, cultivated land or one prepared for cultivation, brings his animals into it, or allows them to cross it or graze in it.
(b) whoever casts stones, solid objects, or garbage at buildings or properties of others.
(c) whoever casts, into a watercourse owned by another, tools or other effects obstructing its flow, or casts in an operational well similar objects capable of disrupting its utilisation.
(d) whoever causes, by mistake, the death or harm of an animal or bird owned by another.

(e) whoever causes, by his negligence, the destruction of movable property owned by another.

Article 374

Whoever commits a lustful act with an animal shall be punished by imprisonment for a period no less than (6) six months and not exceeding a year.

Article 375

The following shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments:

(a) whoever wilfully kills, without justification, a riding, towing, or pack animal, or cattle, owned by another, or physically harms it.
(b) whoever uses a means of extermination of aquatic living resources in a water resource, or in pools, through poison, explosives, chemical substances, electric methods, or otherwise.

Article 376

Whoever wilfully kills, without justification, a group of bees, or a poultry or domesticated animal, owned by another, outside those stipulated in Article 375 of this Law, shall be punished by imprisonment for a period no less than (10) ten days and not exceeding (3) three months, and a fine no less than (100) one hundred Rial Omani and not exceeding (500) five hundred Rial Omani, or one of those two punishments.

Article 377

The following shall be punished by imprisonment for a period no less than (10) ten days and not exceeding a month, and a fine no less than (50) fifty Rial Omani and not exceeding (100) one hundred Rial Omani, or one of those two punishments:

(a) whoever severely beats, or tortures, a domesticated animal, poultry, or a caged ferocious animal.
(b) whoever exhausts an animal by riding, walking, or loading it beyond its stamina.
(c) whoever excessively uses an animal incapable of work because of its age, disease, injury, or disability, or neglects its care to a degree that harms it.

Article 378

Prosecution of the crimes stipulated in this Chapter shall be based on complaint by the victim. The prosecution shall lapse or the execution of the sentence shall be stayed by withdrawal of the complaint. That is with the exception of Articles 374 and 377 of this Law.

Part Twelve
Commerce-Related Crimes

Chapter One
Fraudulent Transactions

Article 379

Whoever uses an incorrect scale or unit of weight, measurement, or volume, or one contrary to the genuine unit, with knowledge thereof, shall be punished by imprisonment for a period no less than a month and not exceeding (6) six months, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments.

Article 380

Whoever produces, manufactures, displays, sells, stores, transports, markets, promotes, disposes, or possesses with the intention to sell, spoilt or adulterated products related to the nutrition of humans or animals, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (10,000) ten thousand Rial Omani.

The punishment shall be doubled if it results in harming the health of a human or it results in the death of an animal.

If it results in the death of a person, the punishment shall be imprisonment for a period no less than (10) ten years and not exceeding (15) fifteen years.

Attempt is punished by the same punishment stipulated in this Article.

Article 381

Whoever stores or transports spoilt or replicate commodities with the intention to market, sell, modify, or alter it, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (10,000) ten thousand Rial Omani.

Article 382

Whoever cheats a contracting party regarding the nature, essential characteristics, composition, amount of beneficial components contained, date of expiry, kind, or origin of goods or services where the specification of kind or origin is mandated by agreement or custom, shall be punished by imprisonment for a period no less than (6) six months and not exceeding (3) three years, and a fine no less than (1,000) one thousand Rial Omani and not exceeding (10,000) ten thousand Rial Omani.

Whoever imports, purchases, or promotes such goods with the intention to trade in them, with knowledge thereof, shall be punished by the same punishment.

The punishment shall be aggravated provided it does not exceed the double, if it results in harming the health of a human or it results in the death of an animal.

Article 383

Whoever manages, or attempts, to increase or reduce the price of goods or foodstuff by cheating, or proceeds using any act to interrupt the law of supply and demand in the market, shall be punished by imprisonment for a period no less than a month and not exceeding (2) two years, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani.

Chapter Two
Bankruptcy

Article 384

Every merchant who declares bankruptcy by a conclusive judgment, and it is established that he committed one of the following acts, shall be deemed fraudulently bankrupt and shall be punished by imprisonment for a period no less than (3) three years and not exceeding (5) five years:

(a) conceals, destroys, or substitutes his books, or manipulates their data.
(b) takes, conceals, or dissipates part of his property in detriment to his creditors.
(c) declares a fictitious debt, or puts himself in debt falsely for amounts that he does not actually owe, whether in his books, budget, or other papers, or by verbal declaration.
(d) refrains from submitting papers or clarifications requested from him by a competent authority, with knowledge of the consequence of refraining.

Article 385

Authorised partners, members of the board of directors, managers, liquidators, or auditors, shall be punished by the punishment stipulated in Article 384 of this Law, where the bankrupt person is a company, if they:

(a) proceed to commit one of the acts stipulated in that Article.
(b) commit, or facilitate, by means of cheating and false means, acts that lead to the bankruptcy of the company.
(c) announce untrue information about the subscribed or paid up capital.
(d) distribute fictitious profits.
(e) obtain bonuses exceeding the amounts stipulated in the Law, the constitutive contract of the company, or its articles of association.

Article 386

Every merchant who declares bankruptcy by a conclusive judgment and it is established that he committed one of the following acts, shall be deemed negligently bankrupt and shall be punished by imprisonment for a period no less than a month and not exceeding a year:

(a) expends excessive amounts on his personal or household expenses.
(b) expends amounts on speculative activities outside what his business activities require.
(c) purchases goods to sell them below their price, borrows amounts, issues commercial papers, or uses other means that cause him substantial loss to obtain money, in order to delay the declaration of his bankruptcy.
(d) reaches conciliation with his creditors using false means.
(e) satisfies payment after suspending the payment of debt to a creditor, to the detriment of others, or permits special benefits to one of his creditors, in preference over others, even if that is with the intention to achieve conciliation.
(f) fails to keep commercial books that are sufficient to determine his true financial position.
(g) fails to submit to the court a report upon request to declare bankruptcy, in accordance with the circumstances legally prescribed, refrains from submitting the data requested by the court or bankruptcy administrator, or submits untrue data.

Article 387

Where the bankrupt person is a company, the authorised partners, members of the board of directors, managers, liquidators, or auditors, shall be punished by the punishment stipulated in Article 386 of this Law, if they:

(a) proceed to commit one of the acts stipulated in that Article.
(b) participate in activities contrary to the law, the constitutive contract of the company, or its articles of association, or ratify such activities.

Article 388

The bankruptcy administrator shall be punished by imprisonment for a period no less than a year and not exceeding (3) three years, if he embezzles property from bankruptcy during his administration of

it, provides untrue data relating to the bankruptcy, or deliberately proceeds to harm the bankruptcy or one of its creditors.

Article 389

Whoever conceals, or assists in concealing, all or some of the property of the bankrupt, shall be punished by imprisonment for a period no less than a month and not exceeding a year, and a fine no less than (100) one hundred Rial Omani and not exceeding (1,000) one thousand Rial Omani, or one of those two punishments, even if he is a spouse, an ascendant, or a descendant.